Subcontract Agreement

Subcontractor:	Project Name and Location:	Date:
SECO Architectural Systems, Inc. 3685 Hewatt Court, Ste E Snellville, GA 30039	Exterior Bldg Upgrades, Eglin AFB, FL Contractor Job Number: M2008.0011	February 28, 2016 Subcontract No.: 15-SES-W9127S Cost Code:
Federal Tax Identification No.: ☐ Corporation ☐ Sole Proprietor ☐ Partnership	Project Phone No.: N/A	Terms: See attachment
Attention: Subcontractor Phone No.: 770-469-8286 Subcontractor Fax No.: 770-469-5457	Bill To: EvanKoff LLC 10711 SW 216th Street #104 Miami, FL 33170	Completion Date: See attachment

This Subcontract Agreement is made by and between EvanKoff LLC abbreviated as EvanKoff from here on in this contract, and the Subcontractor named above at Miami, Florida. EvanKoff is subcontracting **Exterior Bldg Upgrades, Eglin AFB, FL** (the "Project") in accordance with plans, drawings, general notes, addendums and specifications prepared by NIKA Architects Engineers on behalf of the US Army Corps of Engineers.

In consideration of the mutual promises made herein and other valuable considerations, the receipt and sufficiency of which are hereby acknowledged, EvanKoff LLC and Subcontractor hereby agree as follows:

The Subcontractor is to furnish and install ACM metal panels and all associated work per Plans and Specifications (as indicated below, incorporated herein by reference, with exceptions as stated in the USACE solicitation Amendments) and with compliance to clarification notes between Contractor and Client through the RFI process (USACE solicitation W9127S-15-R-6014) attached.

1. Subcontractor shall furnish the labor, materials, equipment, tools, supervision, insurance and taxes necessary to perform the following work (the "Work") for the amount stated:

To furnish and install ACM panel at all vertical wall areas noted in the material legend.

- Altech Panel systems Accu-Trac DS System with Alpolic ACM.
- Accu-Trac DS is a pressure equalized attachment system mounted directly to the studs through the sheathing/ air barrier or directly to the CMU with furring.
- Alpolic Materials, 4mm FR core aluminum composite material is fabricated and formed into panels shipped directly to the jobsite.
- 4 colors – Standard 2 coat colors, BNT, AGT, CRT, BGY, 20 yr finish warranty TBD based on manufacturers acceptance of the coastal marine environment.

Total SF of wall panel ……113,262 SF

ACM Panel Type #1 -	35,252 SF
ACM Panel Type #2 –	4,980 SF
ACM Panel Type #3 –	36,630 SF
ACM Panel Type #4 –	36,400 SF

Building Scan for filed measurements

- Allowance for up to 5 phased scans
- Travel Expenses
- Processing Data / Registrations of Scans
- Laser Scanning
- Surveying / Target Locations

Payment and Performance Bond

Panel Banding Accents

- 22 ga Brake Metal attached to the face of the ACM panel with color TBD
  Approx 2,000 LF

SUM Amount: $4,048,455.00

Four million forty eight thousand, four hundred and fifty five dollars with zero cents.

Subcontractor:
SECO Architectural Systems, Inc.
Project Name:
Exterior Bldg Upgrades, Eglin AFB, FL

Exclusion:

- Missing elevation Q-R-S-T at Frame Line 11 and T-S at Frame Line 11.2
- No Limit 20 year warranty labor
- All Penetrations not shown on Architectural Drawings.
- All Coping materials, new membrane flashing, sill flashing
- No Limit 20 year warranty labor
- Coastal finish warranties required within 1000 ft of a body of salt water
- Permits.
- Caulking / sealants at adjacent dissimilar materials such as glass, storefront, masonry, concrete, etc.

Subcontractor shall place sufficient manpower and equipment on the job so that his Work will continuously progress and be performed in accordance with the Contract insofar as it is applicable and otherwise to the satisfaction of EvanKoff. If the Subcontractor should, in the opinion of EvanKoff, fails to do so, or fails to perform any of the Subcontractor's other obligations hereunder, EvanKoff may, upon three (3) working days prior written notice, take over Subcontractor's Work and complete this Work at Subcontractor's sole cost and expense.

2. The Subcontractor shall make all requests for changes due to additional work, extensions of time or other damages, in writing to EvanKoff and receive written approval from EvanKoff prior to proceeding with such additional work. All requests for changes shall be submitted in a manner and within a time frame so as to allow EvanKoff to request any necessary changes from the Owner.

3. Subcontractor shall be responsible for and save EvanKoff harmless from all liens and expense incurred as a result of liens or claims of lien placed on the property of the Project, whether caused by Subcontractor, or supplier thereof.

4. The Contractor shall pay the Subcontractor each progress payment and final payment within three working days after he receives payment from the Owner. Subcontractor payments will be made on invoices as approved by EvanKoff and Invoices shall be identified by project name and subcontract number as listed above and will require as a condition to payment, Subcontractor's execution and delivery of lien waivers and releases.

Subcontractor shall indemnify, defend and hold harmless EvanKoff from any claims, accidents, injuries or damages arising from the performance of Subcontractor's Work, or its failure to otherwise comply with the terms and conditions hereof. Prior to commencing the Work, Subcontractor shall procure and maintain in force until the completion of the Work, the following insurance in the indicated amounts. Subcontractor shall furnish EvanKoff a copy of the Certificate of Insurance, with EvanKoff and _____Aerostar SES LLC _____ as additional insured's, which evidences compliance with the listed insurance requirements. (Indicate Owner)

Workman's Compensation:	Statutory Maximum Requirement at project location.
Employers Liability:	$100,000 Each Accident $100,000 Disease-Each Employee $500,000 Disease-Policy Limit
General Liability:	$1,000,000 Each Occurrence $2,000,000 in aggregate
Automobile Liability:	$300,000 Combined Single Limit

(All insurances are minimums and Dependent upon specific sub contract)

5. Subcontractor warrants that he is, and during the course of the work on the project, will remain in full compliance with all licensing requirements under applicable Federal, State and local laws. Subcontractor is required to abide by all local, State and Federal Health and Safety Laws and Regulations and the requirements of EvanKoff Safety Program and any project specific safety requirements.

6. Subcontractor agrees that prior to final payment all certified payroll reports must submitted, release of liens signed, W9, and a labor warranty must be given in writing as per required by Contractor Aerostar SES LLC and/or Client/Owner US Army Corps of Engineers as per Evankoff Subcontract M2008.0011.1-2752.

Subcontractor:
SECO Architectural Systems, Inc.
Project Name:
Exterior Bldg Upgrades, Eglin AFB, FL

7. Contractor must abide by all rules, regulations, scope of services, specifications, insurance requirements as per Evankoff Aerostar SES Subcontract M2008.0011.1-2752. Contractor Job Number: M20008.0011.

In addition to the above lump sum amount, Subcontractor acknowledges receipt of the payment of _____in consideration of the provisions of Note 6 of this Subcontract Agreement. In witness whereof, Subcontractor and Contractor have executed this Subcontract Agreement on the date written above.

Subcontractor Acceptance		Contractor
SECO Architectural Systems, Inc.	***Please return signed original and acknowledgment copy of Subcontract Agreement to***	EVANKOFF LLC
By:	→	By: Eric Coffie
E-Mail Address: jjderman@secoinc.biz		E-Mail Address: eric@evankoff.com

AerostarSES LLC	**Aerostar SES LLC (Contractor)** **1006 Floyd Culler Court** **Oak Ridge, TN 37830** **Phone: (865) 481-7837** **Fax: (865) 481-0290**	**Subcontract Number** **M2008.0011.1-2752** (The above number must appear on ALL invoices)
To: (Subcontractor) Evankoff, LLC 10705 SW 216th Street #215 Miami, FL 33170	**Project Name/Contractor Job Number** Exterior Bldg Upgrades, Eglin AFB, FL Contractor Job Number: M2008.0011 Client Prime Contract Number: W9127S-14-D-6001	

This Subcontract, effective as of December 14, 2015, between Aerostar SES LLC (Contractor) and the above named Subcontractor who hereby agree that all Work, which is a portion of the goods and/or services to be provided by Contractor for USACE, Little Rock District (Client), shall be performed by the Subcontractor in accordance with all the provisions of this Subcontract, consisting of the following Subcontract Documents attached hereto and made a part hereof:

Exhibit A General Conditions

Exhibit B Special Conditions for Construction

Exhibit C Scope of Work

Work to be Performed

Except as may be specified elsewhere in this Subcontract, Subcontractor shall furnish all necessary labor; materials; tools; supplies; equipment; transportation; supervision; technical, and other services; and shall perform all operations necessary and required to satisfactorily furnish and install wall panels and canopies in accordance with Exhibit C

Schedule

Unless modified by written agreement signed by both Parties, the Subcontractor shall begin work on 12/14/2015 and all work shall be completed on or before 4/1/2017.

Compensation

As full consideration for the satisfactory performance by Subcontractor of this Subcontract, Contractor shall pay to Subcontractor compensation in accordance with the amounts set forth below and the payment provisions of this Subcontract.

Subcontract Amount (Figures):

Subcontract Amount (Words):

Subcontract Cost Type:

Authorized Signatures

IN WITNESS WHEREOF, the Parties have caused this Subcontract to be executed as of December 14, 2015.

Aerostar SES LLC		**Evankoff, LLC**	
Signature:		**Signature:**	
Name:	**Diane White**	**Name:**	
Title:	**Contracts Manager**	**Title:**	
Date:	**12/14/2015**	**Date:**	

EXHIBIT A
GENERAL CONDITIONS

SUBCONTRACT NUMBER M2008.0011.1-2752

EXHIBIT A
GENERAL CONDITIONS

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EXHIBIT A
GENERAL CONDITIONS

GC-1 DEFINITIONS

The following terms shall have the meanings as defined below:

A. "Contractor" means Aerostar SES LLC.
B. "Subcontractor" means Evankoff, LLC
C. The term "Parties" as used herein means Contractor and Subcontractor.
D. The terms "Subcontract" and "Agreement" mean this Subcontract Form of Agreement and all documents contained herein, including any amendments or modifications as executed by the Parties.
E. The term "Client", "Customer", "Government", and/or "Owner" means the organization with whom Contractor has entered into a Prime Contract and for whose benefit the work under this Subcontract is performed.
F. The term "approval(s)" shall in all cases mean written approval.
G. The term "days" shall denote calendar days unless otherwise specified.
H. The term "FAR" as used herein means the Federal Acquisition Regulations as printed in Chapter 1 of Title 48 of the Code of Federal Regulations.
I. The term "Employee" includes any employee of Subcontractor, and any employee of any lower- tier subcontractor, who will perform any Work under this Subcontract. Unless otherwise qualified, the term includes all employees, regardless of the position held, including partners and individuals doing business as a firm.
J. The term "Contractor's Contractual Representative" means employee(s) of Contractor who have authority to act for and on behalf of Contractor.
K. "Government" means the United States of America.
L. The terms "Jobsite," "Site," "Place of Performance" and "Work Area" as used herein mean the location(s) where the Work related activities and operations will be performed under this Subcontract.
M. The term "lower-tier subcontracts" as used herein means any contractual agreement entered into by Subcontractor, the purpose of which is to provide goods or services that are required to fulfill the obligations under this Subcontract.
N. The terms "Work" and "Services" mean all duties and responsibilities to be performed by Subcontractor as specified, stated, indicated, or implied by this Subcontract, including the furnishing and supervision of all technical personnel and labor and the supply of equipment, materials, and supplies necessary to perform this Subcontract.

GC-2 ENTIRE AGREEMENT

This Subcontract embodies the entire agreement between the Parties. The Parties shall not be bound by or liable for any statement, representation, promise, or understanding not set forth herein. Nothing contained in proposals, correspondence, discussions, or negotiations prior to the date of this agreement has any effect on this agreement unless specifically incorporated herein. No changes, amendments, or modifications of any of the terms and conditions hereof shall be valid unless reduced to writing and signed by the Parties.

GC-3 ORDER OF PRECEDENCE

All Subcontract documents and subsequently issued Change Notices/Orders and Modifications are essential parts of this Subcontract, and a requirement occurring in one is binding as though occurring in all. Any inconsistency or ambiguity in the interpretation and performance of this Subcontract shall be resolved by giving precedence in the following order:

1. Subcontract Form of Agreement (including, but not limited to, Change Notices/Orders and modifications)
2. Special Conditions
3. General Conditions
4. Subcontract Attachments (including, but not limited to, the Prime Contract Flowdown requirements)

GC-4 HEADINGS

The captions in this Subcontract are for convenience only and shall not define or limit any of the terms herein.

GC-5 SEVERABILITY AND INTERPRETATION

In the event that any provision of this Agreement shall be held to be invalid or unenforceable, the remainder of the Agreement shall not be affected and the Agreement shall be construed in all respects as if such invalid or unenforceable provisions were omitted.

Each party acknowledges that it has had a fair and reasonable opportunity to review this Subcontract, which shall be construed as though drafted by both Parties.

GC-6 WAIVER

The failure of either Party to insist upon strict performance of any of the terms and conditions herein, or to exercise any rights or remedies, shall not constitute a waiver of its rights hereunder.

GC-7 CONTRACTUAL REPRESENTATIVES/WRITTEN NOTICE

The following personnel are authorized representatives of Contractor and Subcontractor and their addresses given below shall be the addresses for all notices and correspondence in all matters dealing with this Subcontract. Except as otherwise expressly provided herein, all written notices required to be delivered by the Parties pursuant hereto shall be deemed so delivered at the time delivered by hand, by a nationally recognized overnight courier service, transmission by facsimile with proof of valid transmittal, by electronic system and read receipt proof of delivery, three (3) business days after placement in the U.S. Mail, or by registered or certified mail, return receipt requested

(Contractor)	(Subcontractor)
Aerostar SES LLC	Evankoff, LLC
Attn: Diane White	_____
1006 Floyd Culler Court	_____
Oak Ridge, TN 37830	_____
E-mail: dwhite@specproenv.com	E-mail: _____

GC-8 SMALL BUSINEES QUALIFICATION AND CERTIFICATION

By initialing below, Subcontractor certifies it is properly and currently qualified, in accordance with applicable regulations, as the following type(s) of business:

_____ 8(a) Small Disadvantaged Business
_____ Other Small Disadvantaged Business
_____ Woman-Owned Small Business
_____ Service-Disabled Veteran-Owned Small Business
_____ Veteran-Owned Small Business
_____ HUBZone Small Business
_____ Other Small Business
_____ Large Business

If Subcontractor is uncertain of which business type applies, see the CFR Title 13, subparts 121.410 and 121.411. Further guidance regarding appropriate size standards may be found at http://www.sba.gov/size as well as FAR 19.7 or 52.219-8.

GC-9 INDEPENDENT CONTRACTOR

Subcontractor shall perform all Work hereunder as an independent contractor, in accordance with this Agreement and with its own methods. Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, association or employer-employee relationship. Neither Party by virtue of this Agreement shall have any right, power, or authority to act or create any obligation, express or implied, on behalf of the other Party. Subcontractor shall be responsible for all applicable taxes, payroll, employment benefits, social security, unemployment, Worker's Compensation, and/or any other benefits of any kind due to its own employees and sub-tier subcontractors.

GC-10 ASSIGNMENT AND SUBCONTRACTING

Subcontractor shall not assign, transfer, or subcontract all or any portion of this Subcontract or any of its obligations hereunder without Contractor's express, prior written permission, which shall not be unreasonably withheld. Any assignment, transfer or subcontract without such written consent shall be

void. If Contractor grants permission to assign, this Subcontract will be binding upon all respective successors and assigns.

Subcontractor may assign rights to be paid amounts due to a financing institution if Contractor is promptly furnished a written notice and a signed copy of such assignment. Payments to assignee shall be subject to set off or recoupment for any present or future claims of Contractor against Subcontractor. Subcontractor shall perform all services hereunder with its own personnel and shall not enter into a subcontract or purchase order for any portion of the work without the prior written consent of the Contractor. If assigned, all covenants, stipulations and promises of this Subcontract shall be binding upon and inure to the benefit of the parties hereto and their respective successors, assigns and legal representatives.

GC-11 OWNERSHIP OF DOCUMENTS AND DATA

Upon final payment to Subcontractor, unless otherwise specifically stated herein, Contractor and their Client own the property rights, except for copyrights, of all documents, electronic data, drawings, specifications, and information prepared, provided, or procured by Subcontractor and distributed to Contractor as part of Subcontractor's Services under this Agreement. Contractor and their Client shall have the right to use, reproduce, and make derivative works of these documents. If this Agreement is terminated prior to completion of the Work, Contractor and their Client own the property rights of all such documents and data supplied and paid for prior to termination.

GC-12 INVENTIONS, TRADEMARKS, PATENT APPLICATION, COPYRIGHT REGISTRATION

Unless otherwise provided, any and all works-in-progress and completed deliverables ("Intellectual Property") used, developed, or modified in the performance of Work under this Subcontract shall remain the sole property of Contractor and Client.

Works-in-progress include all partially-completed deliverables, associated work papers, narrative descriptions, reports, data, and any other materials of a similar nature which are necessary or desirable for the completion of the Work.

Upon request, Subcontractor shall execute and deliver all instruments and documents, and take other necessary actions to document the assignment, transfer and conveyance of such Intellectual Property as set forth above, to enable Contractor and their Client to obtain and enforce such patent, trademark, copyright or other similar protection for such Intellectual Property.

Notwithstanding the above, any pre-existing materials incorporated into the Work and Work Product shall be and will remain the property of Subcontractor. Subcontractor agrees and hereby grants to Contractor and their Client a perpetual, irrevocable, royalty-free, nonexclusive, worldwide license, with the rights to sublicense, use, reproduce, display, transmit, market, sell, modify, enhance and create derivative works of such materials for the purposes covered by this Subcontract. The term "pre-existing materials" shall mean all tangle items and materials conceived, developed and reduced to practice prior to or wholly independent of Subcontractor's performance of any Work hereunder.

GC-13 TIME FOR PERFORMANCE

Subcontractor agrees to use its best efforts to complete the Work within the time period prescribed herein. If Subcontractor has knowledge of any actual or potential conditions that are delaying or could possibly delay its timely performance, Subcontractor shall notify Contractor promptly in writing of such delay and the reasons therefore. The Parties will attempt, when possible, to negotiate a revised completion date.

Time is of the essence for the Work hereunder. If Subcontractor fails to comply with the delivery or performance schedule for reasons that do not justify a revision to the completion date and Subcontractor falls behind schedule, as determined by Contractor in its sole discretion, Subcontractor at its sole expense and without additional compensation, work extra hours, weekends, or add additional labor to catch up and maintain the schedule established by Contractor.

Notwithstanding the fact that this Subcontract is executed as of a specific date set forth, the Parties recognize that a portion of the Subcontractor's Work may have been performed prior to such date. If this occurs, all of Subcontractor's Work shall be governed by the Terms and Conditions of the Subcontract.

GC-14 COOPERATION WITH OTHERS

Subcontractor shall fully cooperate with Contractor and others engaged in the work on the project, and shall not interfere with the performance of such work, and shall coordinate its work with the work of Contractor, other subcontractors, Owner and its agents or inspectors, and utility companies or others that may be working in the area, so that the work of the entire project may be performed with the utmost speed consistent with good practice. Contractor reserves the right to require Subcontractor to schedule the order of performance of the Work in such a manner as will minimize interference with work of any of the parties involved.

GC-15 FORCE MAJEURE

Neither Party will be liable nor be able to terminate this Subcontract for any failure to perform hereunder where such failure is proximately caused by a Force Majeure Event. A "Force Majeure Event" shall mean an event beyond the reasonable control and without the fault or negligence of the Party affected and which by exercise or reasonable diligence the said Party is unable to prevent or provide against. Any Party asserting Force Majeure as an excuse to performance shall have the burden of proving proximate cause and that reasonable steps were taken to minimize the delay and damages caused by events when known. The Party claiming Force Majeure must promptly notify the other party that the event has occurred.

GC-16 INSPECTION OF WORK AND RECORDS

Subcontractor shall maintain accounting records relating to its performance of the Work hereunder and shall make such records available to Contractor at all reasonable times during the period of performance and five (5) years after the completion of the work, or until Contractor closes out the contract with the Client, whichever is later.

Contractor and Contractor's Client have the right to inspect and test all services and supplies called for by this Subcontract at all places and times, including the period of manufacture or performance, and in any event before acceptance. If Contractor specifies an inspection system elsewhere in this Subcontract, Subcontractor shall provide and maintain such inspection system covering services and supplies under this Subcontract and shall provide only services and supplies that have been found to conform to the requirements of this Subcontract. Complete records of all inspections shall be maintained and made available to Contractor during performance and for as long as this Subcontract requires. Contractor shall perform inspections and tests in a manner that will not unduly delay the Work. Contractor assumes no contractual obligation to perform any inspection or test for the Subcontractor's benefit unless specifically set forth elsewhere in this Subcontract. Contractor's failure to inspect the service or supplies shall not relieve the Subcontractor from responsibility, nor impose liability on Contractor, for nonconformity. If Contractor performs inspection or test on the premises of Subcontractor or a lower-tier subcontractor, Subcontractor shall cause to be furnished, without additional charge, all reasonable facilities and assistance for the safe and convenient performance of these duties.

Contractor may reject or require the correction of any nonconformity. If Subcontractor is not ready for inspection at the time specified by Subcontractor, or if prior rejection makes inspection or retest necessary, Contractor may charge Subcontractor the additional cost of inspection or test. Subcontractor shall not tender for acceptance corrected or rejected services or supplies without disclosing the former rejection or requirement for correction, and shall disclose the corrective action taken.

Contractor, in addition to any other rights or remedies provided by law or under other provisions of this Subcontract, may require Subcontractor, at no increase in Subcontract price, to (1) re-perform the nonconforming services and correct or replace the nonconforming supplies or (2) reduce the Subcontract price to reflect the reduced value of Subcontractor's performance. When supplies are returned, Subcontractor shall bear the transportation cost. If within 10 days of Contractor's written notice, Subcontractor fails to re-perform or replace, as required, Contractor has the right by contract or otherwise to perform the services, replace or correct such supplies, and charge the Subcontractor the cost occasioned Contractor thereby and/or terminate this Subcontract for default under the General Condition entitled "TERMINATION."

GC-17 CONSIDERATION AND COMPENSATION

In full consideration of Subcontractor's satisfactory performance of the Work, Contractor agrees to pay

Subcontractor in accordance with the terms established in the Compensation section at the beginning of this Agreement, or as set forth in individual Task Orders issued hereunder, subject to any limitations or conditions contained herein.

Unless amended in writing and signed by the Parties, Contractor is not obligated to pay any amount in excess of the stated Compensation.

Unless expressly stated, the Compensation agreed upon herein includes all sales and use taxes, franchise, excise, and other taxes and governmental impositions of all kinds, and is not subject to an addition for any such taxes or impositions assessed.

When applicable, Subcontractor shall notify Contractor in writing when the cost incurred under Cost Reimbursement or Time and Materials tasks have reached 75% of the total Compensation, or earlier if Subcontractor has reason to believe that the costs it has incurred and expects to incur will exceed the amount authorized.

GC-18 INVOICING

a) Itemized costs – To enable the Contractor to comply with its semi-annual self-performance reporting requirements to the U S Government Small Business Administration, each invoice must separately itemize labor costs. Labor costs are defined as fully burdened labor exclusive of fee. The itemization is to include only the total cost for fully burdened labor (without fee). A detailed breakdown of burdened labor costs by labor category is not required. The itemization of fully burdened labor costs applies to all subcontracts and this requirement cannot be waived. If expenses are allowed as provided in this Agreement, Subcontractor must also separately itemize these costs and provide copies of actual receipts in order to be reimbursable.

b) Invoice submittal - Subcontractor shall submit invoices on a monthly basis for all work performed and costs incurred during the previous month. The Subcontract number shown on the first page of this Subcontract MUST APPEAR ON ALL INVOICES. Invoices shall be submitted by the 28th of each month unless otherwise instructed by Contractor. Any invoice not received by the 28th day of the month may not be processed until the following month. Subcontractor acknowledges that late submission of any invoice causes damage to Contractor. Subcontractor also acknowledges that late submittal will may result in delayed billing which may delay payment to Subcontractor.
The invoice shall reference the specific month *covered* by the billing and should reference the Subcontract number and the specific task number, if any. If multiple tasks are being billed on the same invoice, each task order number must be specifically identified with the amount of that task order set out individually and a grand total established at the end of the invoice. All invoices must be billed in accordance with the method established by the Subcontract. Invoices shall be signed and dated by the Subcontractor, certifying that the costs included are correct and that each of the personnel, sub-tier subcontractors, consultants, and suppliers provided by the Subcontractor, if any, are invoiced pursuant to their applicable labor categories and rates, when applicable.
An original invoice and one copy with all backup documentation shall be submitted to Contractor at the following address:

Aerostar SES LLC
Attn: Electronic Billing
Please include your Company Name and Subcontract Number in the subject line and send via e-mail to:

invoices@specproenv.com

Receipt of a final release of claims may be required before final payment will be made.

GC-19 TAXES

Subcontractor shall, unless otherwise stated in this Subcontract or any Task Order issued hereunder, pay all taxes, levies, duties, and assessments of every nature due in connection with the Work under this Subcontract and shall make any and all payroll deductions and withholdings required by law and hereby indemnifies and holds harmless Contractor and the Owner from any liability on account of any and all such taxes, levies, duties, assessments, and deductions.

Unless otherwise provided herein, the price of the supplies/services includes all taxes. The Parties will cooperate to provide information and certificates necessary for any tax exemption, when applicable.

GC-20 PAYMENT

Payment to the Subcontractor of an acceptable invoice shall be mailed to the Subcontractor's address stated in the Subcontract within seven (7) working days of receipt of payment by Client.

In no event will Contractor be liable for finance or interest charges. Contractor will retain the percentage held by the Client per the terms of the Prime Contract or 10% whichever is greater of the amount of payment due to Subcontractor. Final payment of the Subcontract and associated task order sums, if any, will be withheld until, when requested by the Contractor, the Subcontractor executes and delivers to the Contractor a Final release, discharging Contractor and Contractor's Client, their officers, agents, employees and assigns from all liability, obligation, and claims arising out of or under this Subcontract.

Contractor may also withhold payment due for, but not limited to, the following reasons:

(a) Delays in the work and Contractor's reasonable belief that the unpaid balance would not be adequate to cover actual or liquidated damages for the anticipated delay or faulty work not corrected promptly;

(b) Claims or liens filed against Subcontractor or evidence that a claim or lien will be filed. If such claims or liens are deemed to affect Contractor, Contractor's Client, or the Project, then Contractor is authorized to use whatever means deemed appropriate to cause such claims or liens to be removed or dismissed and the cost thereof, together with attorney's fees, shall be immediately due and payable by Subcontractor to Contractor;

(c) Evidence that lower-tier subcontractors, suppliers or employees have not received payment. Contractor may, by direct check, joint check, or otherwise, pay all lower-tier subcontractors, suppliers or employees who have not been paid the monies due them in connection with this Agreement, whether or not a bond, lien, or other claim has been filed, and Subcontractor will, to the extent that Contractor has not recovered such amounts, reimburse Contractor upon demand. Upon receipt of nonpayment information, Contractor will notify Subcontractor and Subcontractor shall have three (3) business days after receipt of notice to contradict such information, pay the balance due, or provide a satisfactory solution for payment. If one of these actions isn't taken within such time, Contractor may make payment and deduct the payment amount from Subcontractor's total compensation due under the Agreement. A unilateral modification will be issued reflecting the reduction.

(d) Subcontractor's failure to provide Contractor with proof of insurance as required herein. Contractor is required by its insurance carrier to obtain certificates of insurance from every subcontractor utilized. If Contractor fails to do so, its carrier charges it for the cost to obtain the required insurance. If Subcontractor fails to provide an insurance certificate reflecting the required coverages, or in the alternative, a waiver stating that it is not required to carry insurance by the law in the state that the Work is being performed, Contractor will obtain a quote from its own carrier as to the cost to obtain the necessary coverage and deduct that cost from the withheld payment. A copy of the quote will be included with the check. The deducted amount will only be paid to the Subcontractor if sufficient insurance is obtained prior to the completion of the project for which Subcontractor was performing work;

(e) Failure to turn in badges obtained for the project, including any badges obtained for a sub-subcontractor or union worker;

(f) Failure to submit certified payrolls when required and/or requested;

(g) Failure to submit an invoice in the format required under the clause entitled "INVOICING"

(h) Failure to submit a Final Lien Release and Waiver, when required and

(i) Failure to submit other required Subcontract Documents, including, but not limited to As-Built Plans, warranties, guaranties, instruction manuals, spare parts, extra material, and other required documents. The listing of specific documents herein is not all-inclusive or limiting to any other documents not referenced.

Progress payments or other payments, if any, do not constitute specific acceptance of work. The only acceptance shall be a final acceptance of all work, including completion of all warranty periods. A condition precedent to Contractor's acceptance of Subcontractor's work is the Client's acceptance of the

same work. Irrespective of any payments made, Contractor has the right to require a refund for defective work or defective invoicing, and no payment will be deemed to be a waiver of any rights and remedies Contractor is entitled to by operation of contract or law.

A completed W-9 form must be submitted before any payments hereunder can be made.

GC-21 SUBCONTRACTOR CERTIFIED COST OR PRICING DATA

If applicable, Subcontractor Certified Cost or Pricing Data shall be in accordance with FAR 52.215-12.

GC-22 LIEN WAIVER AND RELEASE

As a prerequisite for final payment, Subcontractor shall submit a ”Lien Waiver and Release” attached hereto for the amount previously received by the Subcontractor and its lower tier subcontractors, vendors or suppliers, if any, utilized for the Work and must be signed by a duly authorized company representative. If this Subcontract is for Construction, Interim Lien Waiver and Releases may be required as specified in the Special Conditions. No payment shall be made until the lien waivers have been properly executed by the Subcontractor and all of its lower tier subcontractors (if any).). Subcontractor’s failure to obtain the Unconditional Waiver and Release from all lower tier subcontractors, vendors, and suppliers will constitute a waiver of any kind against Contractor and its sureties resulting from nonpayment to any lower tier subcontractor, vendor, or supplier not disclosed to Contractor. Release and lien waivers must be submitted using the forms attached hereto. No other forms will be accepted. Facsimile or other electronic transmittals of the forms are acceptable, however, the sender is responsible for ensuring receipt and only legible copies will be accepted.

All Lien Waiver and Release Forms must be submitted to:
Kenny Watson
1006 Floyd Culler Court
Oak Ridge, TN 37830

E-mail: Kenny.Watson@specproenv.com

GC-23 INSURANCE

The Subcontractor shall carry and maintain in force and effect during the term of this Subcontract the insurance policies identified herein specifically required by the Client and/or Contractor. Client’s insurance specifications will be included and/or referenced within the Subcontract Documents when applicable. When Client specifications are not applicable, Subcontractor must submit a certificate of insurance naming Contractor as the certificate holder, reflecting the following policies:

a) Commercial General Liability. Such policy shall provide coverage for bodily injury, property damage and personal and advertising injury with limits of $1,000,000 per occurrence and $2,000,000 in the annual aggregate.

b) Workers Compensation and Employers Liability. Such policy shall provide statutory limits for Workers Compensation and $1,000,000 for Employers Liability.

c) Business Automobile Liability. Such policy shall provide coverage for any auto used in the performance of the Work with limits of $1,000,000 combined single limit each accident.

d) Equipment Liability. Such policy shall provide coverage for any equipment used to perform the Work with limits of $1,000,000 combined single limit each accident;

e) Professional Liability. Such policy shall provide coverage for the professional services provided under this contract with limits of $1,000,000 each occurrence and $1,000,000 in the annual aggregate.

The limits required under this Subcontract can be satisfied through any combination of primary and umbrella/excess insurance. Subcontractor’s insurance will be primary, and Contractor’s and Owner’s insurances will be secondary and non-contributing at all times.

Subcontractor shall, in addition to and without limitation of the requirements established herein, cause the insurance policies described herein to include Contractor, its parent, subsidiaries and affiliated companies, Owner, and all of their officers, directors and employees as additional insureds on the Commercial General Liability and Business Automobile Liability policies.

Subcontractor shall furnish the Contractor an insurance certificate detailing the required policies prior to the commencement of Work under this Subcontract, and shall maintain such coverage throughout the period of performance of this Subcontract and all warranty periods applicable to the Work being performed by Subcontractor. Subcontractor's failure to provide insurance as required by this Subcontract may result in withholding of payment in accordance with the General Condition entitled "Payment".

Subcontractor must notify Contractor immediately in the event any insurance policy required by this Subcontract has or will become ineffective for any reason. The notice shall provide the dates and identify the specific coverages that has or will become ineffective. Subcontractor must immediately submit a certificate of replacement showing evidence of coverage or request that Contractor obtain replacement insurance coverage at Subcontractor's expense. If Subcontractor's insurance coverage becomes ineffective and the Subcontractor has failed to provide the above required notice, the Subcontractor shall indemnify Contractor against any claim resulting from Subcontractor's liability arising out of Subcontractor's operations, completed or otherwise, under this Subcontract that is not covered by Subcontractor's insurance.

All lower-tier subcontractors must also maintain the required insurance for the duration of the Subcontract. Subcontractor shall be responsible for any liability arising directly or indirectly out of the work performed by each of its lower tier subcontractors that is not otherwise covered by such Subcontractor's insurance.

Subcontractor agrees to waive any and all rights of subrogation which it or its insurers have or may have against Contractor or Owner and their agents, representatives, employees, officers, directors, sureties, and insurers for any loss or expense which is required to be covered under any policy of insurance pursuant to this Subcontract.

GC-24 CHANGES

Except as provided in the clause entitled "Payment", this Subcontract may not be and shall not be deemed or construed to have been modified, amended, rescinded, canceled or waived in whole or part, except by written instruments signed by the parties hereto.

Contractor's authorized representative(s) may, at any time, by written notice, and without notice to sureties and assigns, if any, make changes within the general scope of the Subcontract or any Task Order issued hereunder, in any one or more of the following: (i) description of services to be performed; (ii) time of performance; (iii) place of performance; (iv) place of delivery; and/or (v) to incorporate changes imposed by the Client.

When, in the Subcontractor's opinion, any such change from Contractor or Contractor's Client, constitutes an increase or decrease in the Subcontract price or the time required for the performance of the Work, or otherwise affects any other terms or conditions of this Subcontract, Subcontractor shall notify Contractor's Authorized Representative immediately in writing within twenty (20) days from the date of receipt of notice of the change, unless the Parties agree in writing to a longer period of time. Upon request from Contractor, Subcontractor may be required at a later date to submit a formal written request including all necessary supporting documentation to justify the modification. A Change Order/Modification constitutes complete agreement between the Parties for the changes. Only Contractor's authorized representatives as set forth herein have authority to modify this Agreement.

Failure to agree to any adjustment shall be resolved in accordance with the clause entitled "Resolution of Disputes" contained herein. However, nothing contained in this Changes clause shall excuse Subcontractor from proceeding without delay in the performance of this Subcontract and/or Task Order.

GC-25 PRIME CONTRACT FLOWDOWN PROVISIONS

Subcontractor agrees to accept and abide by all terms and conditions passed down to it by Contractor under the terms and requirements of the Prime Contract. Failure to do so is a basis for termination of this Subcontract in accordance with the General Condition entitled Termination. Certain portions of the clauses or certain clauses themselves may be self-deleting due to the nature of the work to be performed. The sum and substance of each term and condition shall also be applied to all additional lower-tiered subcontractors, vendors or entities utilized to perform any work under this Subcontract, and Subcontractor shall include this provision in all other subcontracts hereunder. In the event that the Prime

Contract is modified subsequent to the effective date of this Subcontract so as to modify or add additional clauses, Subcontractor agrees to enter into an amendment to insert the substance of such clause(s).

If this Subcontract is for the performance of work under a Federal Prime Contract, Subcontractor shall comply fully with all FAR requirements attached hereto. In particular, Subcontractor shall, whenever required, execute and deliver to Contractor all documents, and take such other actions which may be required by applicable FAR provisions. If applicable, Subcontractor shall comply with the Davis-Bacon Act, or, if applicable, the Service Contract Act, by paying all covered workers in accord with the wage determination(s). In addition, FAR contract provisions which are required to be "flowed down" to Subcontractor shall be deemed to be incorporated herein by reference and apply to any work performed under this Agreement. The most recent version of the clauses at the time the Subcontract or Task Order is placed will be applicable to this Subcontract, unless a different version is specified. Any inconsistencies will be resolved by Contractor's Authorized Representative. Time requirements in the clauses are overridden by the time requirements set forth in this Subcontract or any Task Orders issued hereunder. In all cases referenced, citations should be construed to apply to the Subcontractor as they apply to Contractor. The sum and substance of each regulation shall also be applied to all additional lower-tiered subcontractors, vendors, or entities utilized to perform any work under this Subcontract. The Subcontractor has no right of direct appeal to the Government Contracting Officer or the Government. Therefore, when "dispute" or "Dispute Clause" is referenced in any clause, it shall be deemed to be a dispute between the Subcontractor and Contractor.

To the extent the provisions of the Prime Contract between Owner and Contractor relate, directly or indirectly, to Subcontractor's Work and otherwise do not conflict with any provision in this Subcontract, Subcontractor agrees that such provisions are fully incorporated herein as if completely rewritten herein except that the word "Contractor" shall be substituted for the word "Owner" and the word "Subcontractor" shall be substituted for the word "Contractor" in the Prime Contract. All obligations and representations placed on Contractor under the Prime Contract with Owner shall apply to and be binding upon Subcontractor to the extent they relate in any way to Subcontractor's work or its general obligations under this Subcontract. However, to the extent of any conflicting obligations, the provisions of this Subcontract shall control. To the extent of any conflict between the requirements of any of the foregoing, Subcontractor shall perform the more extensive or expansive of the requirements. Any failure by Subcontractor to acquaint itself with the available information necessary to meet the requirements will not relieve it from responsibility for estimating properly the difficulty or cost of successfully performing Subcontractor's Work and will not relieve it from responsibility for performing the Work. Contractor assumes no responsibility for any conclusions or interpretations made by Subcontractor on the basis of any information made available by the Owner or Contractor.

The Subcontractor shall include the terms of this clause, including this paragraph, in lower tier sub-subcontracts and purchase orders awarded under this Subcontract.

GC-26 COMPLIANCE WITH LAWS

Subcontractor and its employees, representatives, and lower-tier subcontractors, if any, must have all required permits, licenses, certifications, and other approvals required to perform the Work hereunder.

Subcontractor and its employees, representatives, and lower-tier subcontractors shall comply with all federal (including the FAR and FAR supplements), state and local laws, statutes, ordinances, executive orders, rules and regulations applicable to its Work hereunder.

Subcontractor shall immediately notify Contractor in the occurrence of any of the following:

(a) Subcontractor is served with written notice it violated any law, regulation, permit, or license requirement relating to the Work;

(b) The commencement of any proceedings which could lead to revocation of any permits, licenses, or other authorizations related to the Work, or which Subcontractor is required to maintain in order to complete the Work;

(c) The revocation of any permits, licenses, or other authorizations related to the Work, or which Subcontractor is required to maintain in order to complete the Work;

(d) The commencement of litigation against Subcontractor which could affect its performance of the Work; or

(e) Subcontractor becomes aware that its equipment and/or facilities are not in compliance with any applicable laws, regulations, permits or licenses.

Failure to provide notification according to this clause shall constitute a default of this Subcontract.

Subcontractor will indemnify Contractor for any liability incurred by it as a result of breach of any of these obligations. Upon request, Subcontractor shall submit all documentation necessary to illustrate its compliance.

GC-27 INDEMNITY

Each party shall hold the other, the Owner, together with their agents, servants, employees, representatives, officers, directors, sureties and attorneys, harmless from and against and shall indemnify the other for all claims, bodily injury, death or damage to real or tangible property, taxes, liability, loss, costs, expenses, or damages to the extent of its negligent acts or omissions in performing under this Agreement. Subcontractor warrants that it carries adequate insurance to cover its indemnification obligations hereunder, as specified in the Insurance provisions set forth in this Subcontract Agreement.

To the extent of its negligence and/or gross or willful misconduct, the indemnifying party shall reimburse the other for said action at its own expense and shall pay and discharge any judgment that may be rendered in any such action. In the event of any indemnified claim against Contractor by any third person, Contractor reserves the right to choose legal counsel and direct the defense of such claim at Subcontractor's sole cost and expense. Such undertaking of defense shall not be deemed an admission of liability, an agreement to assume liability, or a waiver of any right or remedy which the Contractor may have. This right may only be exercised if the Subcontractor is notified of the claim, the claim is the result of Subcontractor's performance of the Work, and the Subcontractor either fails or neglects to defend the claim.

Subcontractor's indemnity obligations shall remain in full force and effect regardless of whether the claim relates to a claim under Subcontractor's Worker's Compensation Policy.

Each party shall protect, indemnify, and hold harmless the other party hereto from and against any and all damages and expenses arising out of a claim of actual or alleged infringement of patent, copyright, trademark or trade name asserted in connection with the use of equipment, tools, or methods of operation furnished pursuant to this Subcontract.

In no event, regardless of the legal theory under which such damages are sought, shall either party be liable to the other for incidental, indirect, or consequential damages, including but not limited to, loss of profits, or revenue, loss of use of equipment or facilities, costs of capital, cost of substitute or underutilization of equipment, facilities or labor, downtime costs, or claims of customers resulting from the performance or nonperformance of obligations of this Subcontract, even if it has been advised of the possibility of such damages.

GC-28 RESOLUTION OF DISPUTES

Subcontractor will provide Contractor with a timely and detailed written notice of all claims and disputes. The Prime Contract associated with this Subcontract may include a disputes clause. All disputes relating to questions of law or fact related to the Prime Contract will be governed by the Prime Contract disputes clause. If a decision relating to the Prime Contract is rendered by the Client and the decision relates to this Subcontract, said decision, if binding upon the Contractor, shall also be binding upon the Subcontractor with respect to the matter. Upon written request by Subcontractor, Contractor shall file an appeal of the decision. Any decision on appeal, if binding upon the Contractor, shall be binding upon the Subcontractor as it relates to the Subcontract. Subcontractor shall assist Contractor as necessary to diligently pursue all claims. Subcontractor consents to joinder in any proceedings between Contractor and Client upon the request of Contractor.

Pending the final disposition of any disputes, Subcontractor shall proceed as required by the Subcontract documents and as directed by Contractor during any pending claims and/or appeals.

If as a result of any decision or judgment which is binding upon the Subcontractor and the Contractor, the Contractor is unable to obtain reimbursement under the Prime Contract for, or is required to refund or

credit to the Contractor's Client any amount with respect to any item, costs, or fee for which the Contractor has paid the Subcontractor, the Subcontractor shall, on demand, promptly repay such amount to the Contractor.

For all other matters, the Contractor and Subcontractor agree to attempt to resolve any dispute by direct negotiations and in good faith. If these negotiations prove unsuccessful, the following rules shall apply:
The Parties agree that this Subcontract, and the performance or breach thereof, shall be governed and construed in accordance with the substantive and procedural laws of the State of Tennessee, United States of America except for FAR and FAR supplement clauses, if applicable, which shall be determined in accordance with Federal law.

Unless otherwise prohibited, any dispute, controversy, claim or difference arising out of or relating to, or resulting from this Subcontract, its application or interpretation, or a breach thereof, which cannot be settled amicably by the Parties, shall be resolved definitively and exclusively by arbitration under the Rules of Procedure of the American Arbitration Association (the "Rules") then prevailing, which arbitration shall be held in Knoxville Tennessee, United States of America. Arbitration shall be by a single arbitrator in accordance with the Rules. It is agreed that all documentary submissions, presentations and proceedings shall be in the English language. The decision of the arbitrator shall be final and binding on the parties, and judgment upon any award rendered may be entered in any court having jurisdiction thereof. If arbitration is prohibited the dispute will be resolved in the applicable court in the state of Tennessee.

Any time which elapses in attempting to resolve the Dispute through either or both negotiation or arbitration shall extend day-for-day any applicable statute(s) of repose or limitation of actions.

The Parties agree that this Arbitration obligation shall survive the termination of this Subcontract, whether by default or convenience. Notwithstanding anything to the contrary, (a) Contractor reserves the right to pursue and obtain injunctive or equitable relief from a court of law; (b) if a lawsuit or arbitration is brought against Contractor in a court of law and such claims involve, directly or indirectly, Subcontractor's Work, Contractor reserves the right to join Subcontractor in such arbitration or lawsuit, and (c) if any claims by Subcontractor involve, directly or indirectly, the work or obligations of other persons, Contractor reserves the right to join such other persons to its arbitration or litigation with Subcontractor.

GC-29 REMEDIES

If the Subcontractor defaults or neglects to carry out the Work in accordance with the Subcontract Documents and fails within a five (5) day period after receipt of written notice from the Contractor to commence and continue correction of such a default or neglect with diligence and promptness, the Contractor may after such 5-day period give the Subcontractor a second written notice to correct such deficiencies within a subsequent three (3) day period. If the Subcontractor within such 3-day period after receipt of such second notice fails to commence and continue to correct any deficiencies, the Contractor may, without prejudice to other remedies the Contractor may have, correct such deficiencies or in accordance with the clause entitled "Termination", terminate this Agreement or any applicable task order. Should the Contractor seek to correct the deficiencies, an appropriate Change Order/Modification shall be issued deducting from payments then or thereafter due the Subcontractor the cost of correcting such deficiencies, including compensation for the Contractor and Owner's additional services and expenses made necessary by such default, neglect or failure. Such action by the Contractor and amounts charged to the Subcontractor shall be reasonable and necessary. If payments then or thereafter due the Subcontractor are not sufficient to cover such amounts, the Subcontractor shall pay the difference to the Contractor.

GC-30 SUSPENSION

In the event Owner, for any cause, suspends work under the Prime Contract, Contractor may order Subcontractor to suspend Work under the Subcontract. Subcontractor shall not be entitled to any additional compensation or damage for such suspension, except and only to the extent Contractor receives additional compensation from Owner for work covered by this Subcontract. Subcontractor shall not be entitled to profit on its costs attributable to any such suspension.

The Contractor may direct the Subcontractor in writing to suspend, delay or interrupt all or any part of the Subcontract Work for such period of time as may be determined to be appropriate for the convenience of

the Contractor. If any such suspension significantly delays progress or causes the Subcontractor additional direct expenses in the performance of the Subcontract, not due to the fault or negligence of the Subcontractor, the compensation to the Subcontractor shall be adjusted by a formal modification to the Subcontract and the time of performance shall be extended by the actual duration of the suspension. If an agreement on a modification cannot be reached, the amounts will be determined under the clause entitled Disputes. Any claim by the Subcontractor for compensation of a schedule extension must be supported by appropriate documentation asserted within ten days from the date an order is given to the Subcontractor to resume the performance of the Subcontract.

Short, incidental, reasonable stoppages of work shall not be deemed to be a suspension, delay, or interruption of work.

GC-31 TERMINATION

This Subcontract shall terminate in whole, or in part, at any time and for any reason upon the occurrence of one of the following events:

(a) The completion of the Work;

(b) The rejection by Client/Owner of Subcontractor as an acceptable candidate to perform the Work as set forth herein;

(c) By mutual written consent of the Parties;

(d) In accordance with the General Condition entitled “Remedies”.

(e) The default by either Party of any terms set forth within this Subcontract. Notwithstanding any other provisions of this Subcontract, Subcontractor shall be considered in default of its contractual obligations under this Subcontract if it:

- Performs Work which fails to conform to the requirements of this Subcontract;
- Fails to make progress so as to endanger performance of this Subcontract;
- Abandons or refuses to proceed with any of the Work, including modifications directed pursuant to the General Condition entitled “Changes”;
- Fails to fulfill or comply with any of the terms of this Subcontract;
- Fails to notify Contractor of a revoked, suspended, or otherwise discontinued required license
- Engages in behavior that is dishonest, fraudulent or constitutes a conflict of interest with Subcontractor’s obligations under this Subcontract;
- Becomes insolvent or makes a general assignment for the benefit of creditors or reasonable grounds for insecurity arise with respect to Subcontractor’s performance;
- Violates any applicable law or regulation.

The party seeking to terminate for default must give the defaulting party at least five (5) days' formal written notice (in accordance with the clause entitled “Authorized Representatives/Written Notice”) of their intent to terminate before this clause may be activated. If Subcontractor is in default and does not cure such failure within the time specified from receipt of notification, or fails to provide satisfactory evidence that such default will be corrected within a reasonable time, Contractor may acquire, under the terms and in the manner Contractor deems appropriate, supplies and/or Services similar to those terminated and the Subcontractor will be liable for excess costs for those supplies and/or Services.

Upon termination of this Subcontract, the Subcontractor shall have no right to perform further work under this Subcontract or to receive any compensation for services or material provided after the date of termination. Upon receipt of notice of termination, the Subcontractor shall immediately remove its equipment and personnel from the project site, if applicable. Subcontractor expressly understands that this includes any such failures as may be caused by labor disturbances, strikes, slow downs, pickets, or other labor issues, without regard to fault, and that labor disturbances are expressly excluded from the General Condition entitled “Force Majeure”.

Following termination of this Subcontract or any Task Order for any reason, Subcontractor shall deliver to Contractor all deliverables and work in progress prepared hereunder through the date of termination; or

(f) The Contractor's election to terminate the Subcontract, in whole or in part, for convenience. The Subcontract may be terminated at any time, upon reasonable notice, with or without cause. Where the prime contract has been awarded under the Small Business Administration 8(a) program, termination for convenience may be used to reduce Subcontractor's work in whole or in part in order for the Contractor to comply with the Small Business Administration 8(a) self-performance requirements established at FAR 52.219-14. Notwithstanding anything contrary to the foregoing, Subcontractor's warranty obligations shall survive and shall not be affected or modified by any default or termination of this Subcontract, for cause or for convenience.

In the event that any part of this Subcontract is terminated for convenience, the Contractor shall notify the Subcontractor by written notice. Such notice shall specify the extent to which the performance of the Work is terminated and the effective date of such termination. Upon receipt of such notice Subcontractor shall:

- Immediately discontinue the Work on the date and to the extent specified in the notice and place no further purchase orders or order for materials, services, or facilities, other than as may be required for completion of such portion of the Work that is not terminated;
- Promptly obtain assignment or cancellation upon terms satisfactory to Contractor of all purchase orders, subcontracts, rentals or any other agreements existing for the performance of the terminated Work or assign those agreements as directed by Contractor;
- Assist Contractor in the maintenance, protection, and disposition of Work in progress, plant, tools, equipment, property, and materials acquired by Subcontractor or furnished by Contractor under this Subcontract; and complete performance of such portion of the Work that is not terminated.

In the event of termination for convenience, Subcontractor shall, subject to the terms of this Subcontract, be entitled to receive payment for the Work executed prior to the notice of termination. Subcontractor may be entitled to receive reasonable charges for costs incurred by reason of such termination, including overhead and profit for the Work executed, in accordance with FAR clauses 52.249-1 through 52.249-7 as applicable to the type of subcontract designated herein. No profit will be allowed if the Subcontractor would have sustained a loss on the entire Subcontract had it been completed.

Subcontractor shall not be paid for any Work performed or costs incurred that reasonably could have been avoided. All termination settlement proposals must be submitted to Contractor within three (3) months of the issuance of the termination. The Parties may agree on the amount to be paid because of the termination; however, the agreed amount shall not exceed the Subcontract price.

Except as expressly provided to the contrary herein, Contractor and Subcontractor shall retain all rights and remedies available to them by law, in equity, or otherwise in the event of any termination of this Subcontract or any Task Order. All other obligations provided in this Agreement shall survive the termination, cancellation or expiration of this Agreement.

GC-32 ORGANIZATIONAL CONFLICTS OF INTEREST

Subcontractor certifies, to the best of its knowledge and belief, that it understands the principal types of organizational conflicts of interest ("OCI") as described in FAR Subpart 9.5 and other applicable laws and regulations, and that it is not aware of any information bearing on the existence of any actual or potential OCI with respect to the work to be performed under this Subcontract. Should a potential or actual OCI arise during the course of Subcontractor's Work hereunder, Subcontractor will immediately notify Contractor of such and work with Contractor to avoid, neutralize, or mitigate such OCI. Subcontractor's failure to do so may result in Contractor taking appropriate action, including termination of the Subcontract, in addition to any other remedies available to Contractor by contract or law.

Subcontractor will include the provisions of this clause, including this paragraph, in all lower tier subcontracts for performance of any portion of the Work.

GC-33 WARRANTIES

In addition and without prejudice to all warranties expressed or implied by law, Subcontractor warrants that all supplies/services covered by this Subcontract will, unless otherwise specified herein, be new, conform to the drawings, technical requirements, or other description and will be of good material and workmanship and free of defects. Subcontractor shall promptly repair, replace, or re-perform any defective work at no additional cost to Contractor, or at Contractor's election, will refund to Contractor that portion of the amounts received by Subcontractor attributable to the nonconforming services or goods.

Subcontractor warrants that the price(s) specified in this Subcontract do not exceed the current selling prices for the same or substantially similar supplies/services whether sold to the Government or to any other purchaser, taking into account the quantity and conditions of sale. Subcontractor warrants that to the best of its knowledge, information, and belief, the prices charged for supplies/services covered by this Subcontract are not in excess of prices permitted by any applicable law or regulation.

Subcontractor warrants that it has current, accurate and complete annual representations and certifications and will provide a copy upon request.

Subcontractor warrants that the Work will be performed with that degree of skill and judgment ordinarily exercised by individuals performing services of the same or substantially similar nature.

Subcontractor warrants that it has obtained all required licenses necessary to perform the work under this Subcontract and that it is, and shall remain, in compliance with all licensing terms of the clause entitled Compliance with Laws.

Subcontractor warrants that the Work to be supplied hereunder, and Contractor's use thereof, will not infringe, misappropriate, or violate any patent, copyright, trademark, trade secret or other intellectual property or proprietary rights of any third party.

The above warranties also constitute conditions of sale and shall survive inspection, acceptance and payment hereunder. All warranties shall inure to the benefit of Contractor and Contractor's customers.

GC-34 PROPRIETARY AND CONFIDENTIAL INFORMATION

Confidential Information includes all information in any form whatsoever specifically identified in writing as confidential at the time of disclosure by the disclosing Party. Confidential Information may also be identified as such orally at the time of disclosure but must be further identified as such in writing specifically describing such material within five (5) calendar days after such disclosure. Neither Party shall identify information as Confidential Information which is not reasonably classified as such. This Subcontract, its entire contents, including but not limited to the Scope of Work, and the nature of the business relationship between the Parties is hereby classified by the Contractor as proprietary Confidential Information and the existence of which shall not be disclosed without prior written approval by both Parties hereto.

The Parties agree that they will not disclose Confidential Information received for any reason other than the purpose set forth in this Subcontract without the prior written consent of the Disclosure Party, and they will use at least the same degree of care to prevent disclosure to any third party of misuse of the proprietary information as it employs with respect to its own proprietary information of like importance and use, but in no event with less than a reasonable standard of care. Confidential Information will be disclosed only to the receiving Party's employees who have a specific need to know for accomplishing the purpose set forth in this Subcontract. Such receiving employees must be bound by the same requirements established herein.

Neither Party shall be obligated to treat as Confidential Information any information which: (a) was in the receiving Party's possession from a third party having the right to disclose such information; (b) was known to the receiving Party prior to its receipt from the disclosing Party; (c) is or becomes public knowledge through no act of the receiving Party; (d) is furnished by the disclosing Party to others without similar restriction; (e) is independently developed by the receiving Party; (f) is used or disclosed with the prior written approval of the disclosing Party; or (e) is disclosed as required by law. If such a requirement or request is presented, the receiving Party will immediately notify the disclosing Party and will give the disclosing Party a reasonable opportunity to contest or dispute such disclosure if they deem necessary.

Each Party agrees not to make more copies than necessary for internal use of the Confidential Information. All tangible forms and copies of the Confidential Information delivered by either Party to the other pursuant to this Subcontract shall be and remain the property of the disclosing Party, and all such tangible information shall be properly returned to said Party or destroyed upon written request. Any work papers, memoranda or other writings prepared by the receiving Party incorporating any or all of the information shall also be subject to the provisions of this Subcontract.

The obligations stated under this clause shall survive the expiration or termination of this Subcontract and any extension thereof for a period of two (2) years.

This Subcontract, its entire contents, including but not limited to Exhibit C Scope of Work, and the nature of the business relationship between the Parties are company private, trade secret, confidential, and proprietary, and the existence of which shall not be disclosed without prior written approval by both Parties hereto.

GC-35 SECURITY

If work is to be performed on a military or Government installation, or any other site in which the Client has implemented a security program that must be observed by all agencies and individuals, Subcontractor, its personnel and other sub-subcontractors or vendors acting on its behalf must comply with the existing security regulations currently in force while engaged in work at the site. If badges are required for the Work, they will be issued by Contractor. Any badge issued on behalf of Subcontractor its sub-subcontractors, employees, vendors, or any others acting on Subcontractor's behalf must be returned before final payment can be made. If any badges are not returned, any fines, penalties, or other assessments made by the Client for the failure to return will be assessed to Subcontractor and may be taken out of the final payment due. If the fine, penalty or assessment exceeds the amount due to Subcontractor, Subcontractor will pay the difference within ten (10) days of receipt of written notice. Failure to comply with these provisions constitutes a default and all rights and remedies available under contract and by law are applicable. In addition to any site badging requirements, Subcontractor and those acting on its behalf will observe and strictly adhere to any Client site rules, policies, and procedures, and standards of conduct.

GC-36 HEALTH SAFETY AND ENVIRONMENTAL REQUIREMENTS

(a) As used in this clause, the term "HSE program" shall encompass the safety of employees, protection of the environment, and the protection of property.

(b) In performing work under this Subcontract, the Subcontractor shall perform work safely, in a manner that ensures adequate protection of the public, employees, property, and the environment. The Subcontractor's HSE program shall be operated as an integral and visible part of how the organization conducts its business, including the management of both routine and emergency operations. The Subcontractor shall exercise due care commensurate with the associated hazards of the work. The Subcontractor shall ensure that management of HSE functions and activities becomes an integral and visible part of Subcontractor's work planning and execution processes. The Subcontractor shall, in the performance of work, ensure that:

(1) All personnel shall take every reasonable measure to ensure safe operations and conditions in accomplishing the work, including the protection of the public, property, and the environment.

(2) Employees possess the experience, knowledge, skills, and abilities that are necessary to discharge their responsibilities safely.

(3) Resources are effectively allocated to perform work safely.

(4) Lower tier subcontractor safety is properly managed.

(5) Hazard Assessments are performed routinely with each critical task that address engineered, administrative, and personal protective equipment to mitigate risks.

(c) The Subcontractor shall, when required, submit its HSE Plan to Contractor for review and comment before work commences. The Subcontractor shall review and update its HSE program on an annual basis and submit documentation to validate that review.

(d) The Subcontractor shall comply with HSE requirements of all applicable laws and regulations and Government policies. The Subcontractor shall cooperate with Contractor, Federal and non-Federal agencies having jurisdiction over HSE matters under this Subcontract.

(e) Contractor may issue an order to stop work in whole or in part for reasons of human safety or environmental protection without prejudice to any other legal or contractual rights of Contractor. In the event that Contractor issues a stop work order, an order authorizing the resumption of work may be issued at the discretion of the Contractor. The Subcontractor shall not be entitled to additional compensation or damages by reason of, or in connection with any work stoppage ordered with the warranted exercise of this paragraph of this clause.

(f) The Subcontractor shall flow down HSE requirements applicable to this Subcontract to all its lower tier subcontractors to the extent necessary to ensure Subcontractor's compliance with the requirements. The Subcontractor shall include a clause substantially the same as this clause, including this paragraph (f), in all lower tier subcontracts.

(g) This project is designated as a drug free workplace. Any employee working on the Site is prohibited from transporting to or bringing on Site drugs or alcohol.

(h) HSE requirements cited elsewhere in this Subcontract or the prime contract are not waived by this clause.

GC-37 COMMUNICATIONS

Contractor shall be responsible for all liaison and communications with the Contractor's customer as well as Contractor's other subcontractors for the term of this Subcontract. Subcontractor shall not communicate with the Contractor's customer regarding this Subcontract except with the prior consent of Contractor.

GC-38 NON SOLICITATION OF PERSONNEL

The Parties agree that during the term of the Agreement neither party will solicit personnel or consultants of the other party who are performing work under this Agreement for the purpose of inducing them to join their employ.

This clause is not intended to preclude an employee's right to pursue, on their own initiative, employment opportunities that are open to the general public, whether by advertisement or posting online, including the Contractor's parent company's website

GC-39 EXPORT CONTROLS

(a) Subcontractor agrees to comply with all U.S. export control laws and regulations, including but not limited to, the International Traffic in Arms Regulations (ITAR), and the Export Administration Regulations (EAR). Without limiting the foregoing, Subcontractor agrees that it shall not directly or indirectly transfer any export controlled item, software, technology, data, or services, to include transfer to foreign nationals employed by, associated with, or under contract to Subcontractor or Subcontractor lower-tier subcontractors, without the authority of export authorization, nor without first complying with any applicable laws thereto.

(b) Subcontractor agrees to notify Contractor if any articles or service to be delivered under this Agreement is restricted by export control laws or regulations.

(c) Subcontractor shall immediately notify the Contractor if they are or become listed in the Denied Parties List or if Subcontractor's export privileges are otherwise denied, suspended or revoked in whole or in part by any U.S. Government entity or agency.

(d) Subcontractor shall indemnify and hold harmless Contractor from all resulting claims, demands, damages, costs, fines, penalties, attorneys' fees and all other expenses resulting from Subcontractor's failure to comply with this clause.

GC-40 EQUAL OPPORTUNITY

EXECUTIVE ORDER 11246

The Equal Employment Opportunity Clause set forth in 41 C.F.R. Sec.60-1.4(a) (1)-(7) is incorporated herein by reference and made a part of this Subcontract as though fully set forth herein.

VIETNAM ERA VETERANS READJUSTMENT ACT
The affirmative action clause set forth in 41 C.F.R. Section 60-300.5, Affirmative Action and Nondiscrimination obligations of contractors and subcontractors regarding disabled veterans, recently separated veterans, other protected veterans, and armed forces service medal veterans, is incorporated herein by reference and made a part of this Subcontract as though fully set forth herein.

THE REHABILITATION ACT OF 1974
The affirmative action clause set forth in 41 C.F.R. Section 60-741.4, Affirmative Action and Non-Discrimination Obligations of Contractors and Subcontractors regarding Individuals with Disabilities, is incorporated herein by reference and made a part of this Subcontract as though fully set forth herein.

EXHIBIT B

SPECIAL CONDITIONS

FOR CONSTRUCTION

SUBCONTRACT NUMBER M2008.0011.1-2752

EXHIBIT B
SPECIAL CONDITIONS FOR CONSTRUCTION

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EXHIBIT B
SPECIAL CONDITIONS FOR CONSTRUCTION

SC-1 JOBSITE INSPECTION

Subcontractor warrants that it and its Employees are familiar with the job site, the Work as it relates to the job site, and physical and other conditions, including hazardous substances, materials, agents, both surface and subsurface, which may exist at the job site and that Subcontractor has made allowance for any and all such conditions and contingencies in its proposal and related pricing.

SC-2 SUPERINTENDENCE BY SUBCONTRACTOR

At all times during performance of this Subcontract and until the Work is completed and accepted, the Subcontractor shall directly superintend the Work or assign and have on the worksite a competent superintendent who is satisfactory to the Contractor and has authority to act for the Subcontractor.

SC-3 SUBTIER SUBCONTRACTORS

A. Subcontractor shall submit to Contractor the list of all subtier (at all tiers) subcontractors and their function, together with a point of contact address and telephone number for each such subcontractor. Whenever, for any reason, Subcontractor needs to substitute for, add to, or remove one or more of the aforementioned subtier subcontractors from Work under this Subcontract, Subcontractor shall do so only with the prior approval of Contractor.

B. Contractor may not approve any proposed additional/substitute subtier subcontractor if Contractor has actual knowledge of the proposed additional/substitute subtier subcontractor's poor environmental compliance or safety performance under existing subcontracts with Contractor or any work performed for others.

C. Subcontractor's request for Contractor approval of additional/substitute subtier subcontractor(s) must include the following information for each proposed additional/substitute subtier subcontractor:

- A brief explanation of the need to alter the list of subtier subcontractors
- Name, address, contact, and phone number of proposed subtier subcontractor
- Summary list of tasks to be performed under this Subcontract by the proposed subtier subcontractor

SC-4 UTILITIES AND FACILITIES

Availability of utilities and facilities to be furnished by Contractor, others, and/or Contractor's Client, if any, is specified elsewhere in the Subcontract Documents.

SC-5 CONTRACTOR-FURNISHED MATERIALS AND EQUIPMENT

Contractor may furnish to Subcontractor, at Contractor's warehouse or Jobsite storage area, certain items to be incorporated into or used in performance of the Work under this Subcontract. Such items will be furnished, without cost to Subcontractor, provided that Subcontractor shall, at its expense, accept delivery thereof and load, unload, transport to points of use, and care for such items until final disposition thereof. At time of acceptance of any such item from Contractor, Subcontractor shall sign a receipt therefor. Signing of such receipt without reservation therein shall preclude any subsequent claim by Subcontractor that any such items were received from Contractor in a damaged condition and with shortages. If at any time after acceptance of any such item from Contractor any such item is damaged, lost, stolen, or destroyed, such item shall be repaired or replaced at the expense of Subcontractor. Contractor may at its option, furnish items required to be replaced. Upon completion of all the Work under this Subcontract, Subcontractor shall, at its expense, return all surplus and unused items to Contractor's warehouse or Jobsite storage area.

Contractor will exert every reasonable effort to make delivery of such materials and equipment so as to avoid delay in the progress of the Work. However, should Contractor, for any reason, fail to make delivery of any such item and delay results, the provisions of the General Condition entitled "CHANGES" will apply. Subcontractor shall take all appropriate action to mitigate the consequences of such delay.

List of Contractor furnished materials/equipment:
See Exhibit C

SC-6 FINES AND PENALTIES

If a state or federal agency takes an enforcement action with associated fines and penalties against Contractor or Government for regulatory and/or permit noncompliance that resulted from a failure of Subcontractor to perform in accordance with this Subcontract (e.g., failure to meet regulatory reporting milestones, making false statements in reports, etc.), Subcontractor shall reimburse Contractor or the Government for the amount of any resultant fine and/or the cost of additional Work required as a result of the enforcement action. Contractor may withhold such amounts from any payments due Subcontractor.

SC-7 COMPLIANCE WITH DAVIS BACON ACT AND RELATED REGULATIONS

Where the Davis Bacon Act, related regulations, and applicable wage determination have been incorporated into this Subcontract, the Parties have designated below representatives and addresses with responsibility for submittal documents, correspondence, and all other matters relating to Subcontractor's compliance with the Davis Bacon Act and related regulations. Subcontractor acknowledges that the required submittals listed in this clause are vital to the progress and completion of the Work. Accordingly, Subcontractor grants Contractor's Submittal Representative set forth below, and as designated hereafter, the permission and authority to contact any sub-subcontractors directly to discuss the required submittals. Contractor's Submittal Representative must receive all submittals listed herein or directly from the sub-subcontractors. Notwithstanding, Subcontractor retains full responsibility for its sub-subcontractors' compliance.

Submittal Representatives:

For the Contractor	For the Subcontractor
Aerostar SES LLC	Evankoff, LLC
Attn: Ashley Johnson	_____
1006 Floyd Culler Court	_____
Oak Ridge, TN 37830	_____
ajohnson@scf-llc.com	_____

Required Submittals:

- Form SF1413 "Statement and Acknowledgment" (attached) – This form must be completed and submitted to Contractor by Subcontractor and all sub-subcontractors (if any) used by the Subcontractor under this Subcontract. Instructions for completing this form are available from Contractor.
- Form WH347 Payroll Reporting Form (available from Contractor) - This form must be submitted on a weekly basis to the Contractor, even when there is no payroll to report for the week.
- Statement of Compliance (available from Contractor) – This form must be submitted on a weekly basis to Contractor.

SC-8 EXCUSABLE DELAYS

If Subcontractor's performance of this Subcontract is prevented or delayed by any unforeseeable cause, existing or future, which is beyond the reasonable control of the Parties and without the fault or negligence of Subcontractor, Subcontractor shall, within twenty-four (24) hours of the commencement of any such delay, give to Contractor written notice thereof and within seven (7) days of commencement of the delay, a written description of the anticipated impact of the delay on performance of the Work. Delays attributable to and within the control of Subcontractor's suppliers or subcontractors of any tier shall be deemed delays within the control of Subcontractor. Within seven (7) days after the termination of any excusable delay, Subcontractor shall file a written notice with Contractor specifying the actual duration of the delay. Failure to give any of the above notices shall be sufficient ground for denial of an extension of time. If Contractor determines that the delay was unforeseeable, beyond the control and without the fault or negligence of Subcontractor, Contractor will determine the duration of the delay and will extend the time of performance of this Subcontract by written modification. Such extension shall be the sole remedy for the delay.

SC-9 LIQUIDATED DAMAGES

If Subcontractor fails to meet the designated schedule in accordance with the Subcontractor's scope of work, or otherwise causes delays in the overall project schedule, Subcontractor agrees that damages are difficult to ascertain, and agrees to pay by way of liquidated damages the sum of $1580.00 per day for each working day that the work is not satisfactorily completed as liquidated damages and not as a penalty. Subcontractor shall not be assessed liquidated damages for delays not within the Subcontractor's reasonable control.

SC-10 EXPENDITURE NOTIFICATION

Not applicable.

SC-11 WARRANTY

Subcontractor warrants that its employees shall, in performing the work hereunder, exercise that degree of skill, care and diligence consistent with the applicable industry standards and shall perform all work in accordance with any and all drawings, specifications or requirements provided by Contractor and/or Client. Subcontractor will promptly make good by replacement or correction at its sole expense any defective work, any defect in materials or workmanship, including the restoration of any work of Contractor or other subcontractors that has been affected thereby.

Subcontractor further warrants that its personnel are fully trained and qualified to perform the work for which they are assigned hereunder and to safely operate those systems which they will be operating in performing the work hereunder. Upon written request from Contractor, Subcontractor shall promptly remove any personnel deemed by Contractor to be unsatisfactory or incompetent to perform the work. Contractor shall not unreasonably request such removal.

Further, all labor, material, and equipment furnished under this Subcontract is warranted and guaranteed by Subcontractor: (a) to satisfy all requirements of the Subcontract Documents; (b) to be sufficient for the purposes intended; (c) to be merchantable; (d) to be new; and (e) to be installed in a good and workmanlike manner free from defects. The foregoing warranties shall extend for the time period required by the Subcontract Documents, but in no event less than one (1) year from the date of substantial completion of all work under the Subcontract Documents. These warranties are in addition to, and not in lieu of, all implied warranties that may exist under law.

SC-12 DIFFERING SITE CONDITIONS

The Subcontractor shall promptly, and before the conditions are disturbed, give a written notice to the Contractor of (1) Subsurface or latent physical conditions at the site which differ materially from those indicated in this Subcontract; or (2) Unknown physical conditions at the site, of an unusual nature, which differ materially from those ordinarily encountered and generally recognized as inhering in work of the character provided for in this Subcontract.

The Contractor shall investigate the site conditions promptly after receiving the Subcontractor's written notice. If the conditions do materially so differ and cause an increase or decrease in the Subcontractor's cost of, or the time required for, performing any part of the work under this Subcontract, whether or not changed as a result of the conditions, to the extent that the Contractor is reimbursed by the Client an equitable adjustment shall be made under this clause and the Subcontract modified in writing accordingly.

No request by the Subcontractor for an equitable adjustment to the Subcontract under this clause shall be allowed, unless the Subcontractor has given the written notice required.

No request by the Subcontractor for an equitable adjustment to the Subcontract for differing site conditions shall be allowed if such request is made after final payment under this Subcontract.

SC-13 CLEANING UP

Subcontractor shall, at all times, keep its Work areas in a neat, clean, and safe condition. Upon completion of any portion of the Work, Subcontractor shall promptly remove from the Work area all its equipment, construction plant, temporary structures, and surplus materials not to be used at or near the same location during later stages of the Work.

Upon completion of the Work and prior to final payment, Subcontractor shall at its expense satisfactorily dispose of all rubbish; remove all plant, buildings, equipment, and materials belonging to Subcontractor, and

as applicable return to Contractor's warehouse or Jobsite storage area all salvageable Contractor supplied materials or equipment. Subcontractor shall leave the premises in a neat, clean, and safe condition.

In the event of Subcontractor's failure to comply with the foregoing requirements, Contractor may accomplish it at Subcontractor's expense.

SC-14 REPORTING EXECUTIVE COMPENSATION AND FIRST TIER SUBCONTRACT AWARDS

This Subcontract is subject to the Federal Funding Accountability and Transparancy Act (FAR 52.204-10) and/or the American Recovery and Reinvestment Act (FAR 52.204-11). The SUBCONTRACTOR shall provide reporting information in accordance with Attachment 5

SC-15 LIEN RELEASE AND WAIVERS

Fully-executed Interim Release forms must be submitted with every request for progress payment. A fully-executed Final Release form must be submitted with the final request for payment. Payment will not be made until required Releases are received. Interim and Final Release forms are provided at Attachment 6. Forms must be sent to Kenny Watson at Kenny.Watson@specproenv.com. If email isn't available, mail forms to Kenny Watson at 1006 Floyd Culler Court, Oak Ridge, TN 37830

SC-16 LIST OF ATTACHMENTS

ATTACHMENT 1 Prime Contract Flowdown Clauses

ATTACHMENT 2 Wage Determination FL150029 Mod 0 dated 1/2/2015

ATTACHMENT 3 Form SF1413 Statement and Acknowledgement

ATTACHMENT 4 Not Used

ATTACHMENT 5 Reporting Executive Compensation and First Tier Subcontract Awards

ATTACHMENT 6 Waiver and Release Upon Final Payment

EXHIBIT C

SCOPE OF WORK

SUBCONTRACT NUMBER M2008.0011.1-2752

All designs, system modifications and installation of new equipment and materials must improve operations, reduce costs, increase reliability, increase reflectivity and r-values, provide for ease of maintenance, and extend the operational life of the system. Design and construction shall be in compliance with the AFMS Health Facilities Design Guide Rev 6.2, dated 1 March 2015. In addition to the Unified Building Criteria and NFPA Code, the design and construction shall adhere/comply with any and all local state, municipal and base level environmental, architectural, safety and energy standards, statutes, codes and requirements that are published at time of proposal. All daytime construction activities performed in and around facility during normal business shall be conducted as to not interfere or cause disruption to the daily operations of the facility. This is to include disruptions caused by/to noise, smell, utility outages, and paths of ingress and egress or infection control. The contractor shall perform any work that would be disruptive (as described above) after hours, or on weekends or holidays.
The subcontractor is required to produce their own safety plan (APP) and submit it for approval by ASL. No work can take place on the site without an ASL approved APP. Final closeout documentation must be submitted at the completion of the project which includes, but is not limited to, accurate as-built drawings (CAD and PDF), O&M manuals, product data, SDS, training documentation, manufacturer and contractor warranty, and any test reports/certifications. Subcontractor is to supply all labor, materials, equipment and supervision to perform the following scope of work.

Work includes materials, labor, taxes, freight, safety, supervision and equipment to install exterior metal wall panels and canopies on the Eglin AFB Hospital project as per approval drawings and specifications per the Addendum 1 set dated 7/31/15 which includes the following:

- Provide five (5) Building Scans to verify field measurements and produce shop drawings
- Install Panel Banding Accents (22 gauge) Brake Metal attached to the face of the new metal panel cladding as per drawings Main and South Tower: Replacement of exterior cladding on the podium (first floor) facades, on the perimeter walls of Internal Medicine Clinic; ENT/Plastic/Vascular Clinic; Nuclear Medicine Clinic all remaining offices through Physical Medicine.
- New metal panel cladding on existing soffits at both, the south and main tower porches, and the soffit at the west entrance of south podium
- New pressure equalized metal panel cladding on existing covered walkway soffit and columns as per drawings
- Clad Canopies and Radius Columns with ACM as per drawings
- Install new pressure-equalized rain screen metal cladding system to exterior of the main tower as documented in drawings
- Install new pressure-equalized rain screen metal cladding on framed structure (by others) at NEW

MAIN TOWER CANOPY PARKING LOT
North Tower Exterior Cladding: Exterior pressure-equalized rain screen metal cladding on the Podium (first floor) and Tower (Second Floor) facades as documented in provided construction documents.

- Install new pressure-equalized rain screen metal cladding system to exterior of the main tower as documented in drawings
- New metal panel cladding on existing soffit and columns on north tower drop-off canopy

Notes:
Aluminum Composite Panel

- Altech Panel systems Accu-Trac DS System with Alpolic ACM
- Accu-Trac DS is a pressure equalized attachment system mounted directly to the studs through the sheathing/ air barrier or directly to the CMU with furring.
- Alpolic Materials, 4mm FR core aluminum composite material is fabricated and formed into panels shipped directly to the jobsite.
- Standard 2 coat including the mica range, 20 yr finish warranty

Total SF of wall panel 106,110 SF

All materials are to be supplied by the Subcontractor under a separate Materials Purchase Order between the Parties. THIS SUBCONTRACT DOES NOT INCLUDE MATERIALS.

INVOICES FOR THIS SUBCONTRACT MUST BE SEPARATE FROM INVOICES FOR THE MATERIALS PURCHASE ORDER.

ATTACHMENT 1

Prime Contract Flowdown Clauses

Reference the General Condition entitled "Prime Contract Flowdown Provisions"

Client	***Client Classification:***
USACE, Little Rock District	US Gov't - DOD

Subcontract No	***Award Date***	***Subcontractor***
M2008.0011.1-2752	12/14/2015	Evankoff, LLC

Regulation	***Clause No***	***Alt***	***Clause Title***	***Effective***	
FAR	52.202-1		Definitions	NOV	2013
FAR	52.203-3		Gratuities	APR	1984
FAR	52.203-5		Covenant Against Contingent Fees	MAY	2014
FAR	52.203-6		Restrictions on Subcontractor Sales to the Government	SEP	2006
FAR	52.203-7		Anti Kickback Procedures	MAY	2014
FAR	52.203-8		Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY	2014
FAR	52.203-10		Price or Fee Adjustment for Illegal or Improper Activity	MAY	2014
FAR	52.203-12		Limitation on Payments to Influence Certain Federal Transactions	OCT	2010
FAR	52.203-13		Contractor Code of Business Ethics and Conduct	APR	2010
FAR	52.203-14		Display of Hotline Poster(s)	DEC	2007
FAR	52.203-17		Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights	APR	2014
FAR	52.204-2	Alt II	Security Requirements	APR	1984
FAR	52.204-9		Personal Identity Verification of Contractor Personnel	JAN	2011
FAR	52.204-10		Reporting Executive Compensation and First Tier Subcontract Awards	JUL	2013
FAR	52.209-6		Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	AUG	2013
FAR	52.210-1		Market Research	APR	2011
FAR	52.211-12		Liquidated Damages—Construction	SEP	2000
FAR	52.211-13		Time Extensions	SEP	2000
FAR	52.215-2		Audit and Records—Negotiation	OCT	2010
FAR	52.215-11		Price Reduction for Defective Certified Cost or Pricing Data - Modifications	AUG	2011
FAR	52.215-13		Subcontractor Certified Cost or Pricing Data - Modifications	OCT	2010
FAR	52.215-15		Pension Adjustments and Assest Reversions	OCT	2010
FAR	52.215-19		Notification of Ownership Changes	OCT	1997
FAR	52.215-21		Requirements for Cost or Pricing Data or Information Other Than Cost or Pricing Data—Modifications	OCT	2010
FAR	52.222-1		Notice to the Government of Labor Disputes	FEB	1997
FAR	52.222-3		Convict Labor	JUN	2003

Text of these clauses may be viewed via the Internet at http://farsite.hill.af.mil/

Regulation	Clause No	Alt	Clause Title	Effective	
FAR	52.222-4		Contract Work Hours and Safety Standards Act—Overtime Compensation	MAY	2014
FAR	52.222-7		Witholding of Funds	MAY	2014
FAR	52.222-8		Payrolls and Basic Records	JUN	2010
FAR	52.222-9		Apprentices and Trainees	JUL	2005
FAR	52.222-10		Compliance with Copeland Act Requirements	FEB	1988
FAR	52.222-11		Subcontracts (Labor Standards)	MAY	2014
FAR	52.222-12		Contract Termination - Debarment	MAY	2014
FAR	52.222-13		Compliance with Construction Wage Rate Requirements and Related Regulations	MAY	2014
FAR	52.222-14		Disputes Concerning Labor Standards	FEB	1988
FAR	52.222-15		Certification of Eligibility	MAY	2014
FAR	52.222-21		Prohibition of Segregated Facilities	APR	2015
FAR	52.222-26		Equal Opportunity	APR	2015
FAR	52.222-27		Affirmative Action Compliance Requirements for Construction	APR	2015
FAR	52.222-30		Davis Bacon Act - Price Adjustment (None or Separately Specified Method)	MAY	2014
FAR	52.222-35		Equal Opportunity for Veterans	SEP	2010
FAR	52.222-36		Equal Opportunity for Workers with Disabilities	OCT	2010
FAR	52.222-37		Employment Reports on Veterans	SEP	2010
FAR	52.222-40		Notification of Employee Rights Under the National Labor Relations Act	DEC	2010
FAR	52.222-50		Combating Trafficking in Persons	MAR	2015
FAR	52.222-54		Employment Eligibility Verification	AUG	2013
FAR	52.222-55		Minimum Wages Under Executive Order 13658	DEC	2014
FAR	52.223-5		Pollution Prevention and Right-to-Know Information	MAY	2011
FAR	52.223-6		Drug Free Workplace	MAY	2001
FAR	52.223-18		Encouraging Contractor Policies to Ban Text Messaging While Driving	AUG	2011
FAR	52.225-9		Buy American Act - Construction Materials	MAY	2014
FAR	52.225-11		Buy American Act Construction Materials Under Trade Agreements	SEP	2013
FAR	52.225-13		Restrictions on Certain Foreign Purchases	JUN	2008
FAR	52.227-1		Authorization and Consent	DEC	2007
FAR	52.228-5		Insurance—Work on a Government Installation	JAN	1997
FAR	52.229-3		Federal, State, and Local Taxes	FEB	2013
FAR	52.232-16		Progress Payments	APR	2012
FAR	52.232-17		Interest	OCT	2010
FAR	52.232-18		Availability of Funds	APR	1984
FAR	52.232-23		Assignment of Claims	MAY	2014

Text of these clauses may be viewed via the Internet at http://farsite.hill.af.mil/

Regulation	Clause No	Alt	Clause Title	Effective	
FAR	52.232-39		Unenforceability of Unauthorized Obligations	JUN	2013
FAR	52.232-40		Providing Accelerated Payments to Small Business Subcontractors	DEC	2013
FAR	52.232-99		Providing Accelerated Payment to Small Business Subcontractors (DEV)	AUG	2012
FAR	52.233-1		Disputes	MAY	2014
FAR	52.233-4		Applicable Law for Breach of Contract Claim	OCT	2004
FAR	52.236-2		Differing Site Conditions	APR	1984
FAR	52.236-3		Site Investigation and Conditions Affecting the Work	APR	1984
FAR	52.236-4		Physical Data	APR	1984
FAR	52.236-5		Material and Workmanship	APR	1984
FAR	52.236-6		Superintendence by the Contractor	APR	1984
FAR	52.236-7		Permits and Responsibilities	NOV	1991
FAR	52.236-8		Other Contracts	APR	1984
FAR	52.236-9		Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR	1984
FAR	52.236-10		Operations and Storage Areas	APR	1984
FAR	52.236-11		Use and Possession Prior to Completion	APR	1984
FAR	52.236-12		Cleaning Up	APR	1984
FAR	52.236-13		Accident Prevention	NOV	1991
FAR	52.236-15		Schedules for Construction Contracts	APR	1984
FAR	52.236-17		Layout of Work	APR	1984
FAR	52.236-21		Specifications and Drawings for Construction	FEB	1997
FAR	52.236-21	Alt I	Specifications and Drawings for Construction	FEB	1997
FAR	52.236-25		Requirements for Registration of Designers	JUN	2003
FAR	52.236-26		Preconstruction Conference	FEB	1995
FAR	52.242-13		Bankruptcy	JUL	1995
FAR	52.242-14		Suspension of Work	APR	1984
FAR	52.243-4		Changes	JUN	2007
FAR	52.243-7		Notification of Changes	APR	1984
FAR	52.244-6		Subcontracts for Commercial Items	APR	2015
FAR	52.245-1		Government Property	APR	2012
FAR	52.245-9		Use and Charges	APR	2012
FAR	52.246-12		Inspection of Construction	AUG	1996
FAR	52.246-21		Warranty of Construction	MAR	1994
FAR	52.248-3		Value Engineering - Construction	OCT	2010
FAR	52.249-1	Alt I	Termination for the Convenience of the Government (Fixed Price) (Short Form)	SEP	1996
FAR	52.249-10		Default (Fixed price Construction)	APR	1984

Text of these clauses may be viewed via the Internet at http://farsite.hill.af.mil/

Regulation	Clause No	Alt	Clause Title	Effective	
FAR	52.251-1		Government Supply Sources	APR	2012
FAR	52.252-2		Clauses Incorporated by Reference	FEB	1998
FAR	52.252-6		Authorized Deviations in Clauses	APR	1984
DFAR	252.201-7000		Contracting Officer's Representative	DEC	1991
DFAR	252.203-7000		Requirements Relating to Compensation of Former DoD Officials	SEP	2011
DFAR	252.203-7001		Prohibition of Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	DEC	2008
DFAR	252.203-7002		Requirement to Inform Employees of Whistleblower Rights	SEP	2013
DFAR	252.203-7003		Office of the Inspector General	DEC	2012
DFAR	252.204-7000		Disclosure of Information	AUG	2013
DFAR	252.204-7003		Control of Government Personnel Work Product	APR	1992
DFAR	252.209-7004		Subcontracting with Firms That Are Owned or Controlled by the Government of a Terrorist Country	DEC	2014
DFAR	252.211-7007		Reporting of Government Furnished Property	AUG	2012
DFAR	252.215-7000		Pricing Adjustments	DEC	2012
DFAR	252.219-7011		Notification to Delay Performance	JUN	1988
DFAR	252.222-7006		Restrictions on the Use of Mandatory Arbitration Agreements	DEC	2010
DFAR	252.223-7004		Drug Free Workforce	SEP	1988
DFAR	252.223-7006		Prohibition on Storage and Disposal of Toxic and Hazardous Materials	APR	2012
DFAR	252.223-7008		Prohibition of Hexavelant Chromium	JUN	2013
DFAR	252.225-7012		Preference for Certain Domestic Commodities	FEB	2013
DFAR	252.227-7022		Government Rights (Unlimited)	MAR	1979
DFAR	252.227-7023		Drawings and Other Data to Become Property of the Government	MAR	1979
DFAR	252.227-7024		Notice and Approval of Restricted Designs	APR	1984
DFAR	252.227-7025		Limitations on the Use or Disclosure of Government Furnished Information Marked With Restrictive Legends	MAY	2013
DFAR	252.227-7030		Technical Data - Withholding of Payment	MAR	2000
DFAR	252.227-7037		Validation of Restrictive Markings on Technical Data	JUN	2013
DFAR	252.232-7010		Levies on Contract Payments	DEC	2006
DFAR	252.236-7000		Modification Proposals - Price Breakdown	DEC	1991
DFAR	252.236-7005		Airfield Safety Precautions	DEC	1991
DFAR	252.243-7001		Pricing of Contract Modifications	DEC	1991
DFAR	252.243-7002		Requests for Equitable Adjustment	DEC	2012
DFAR	252.245-7001		Tagging, Labeling, and Marking of Government Furnished Property	AUG	2012
DFAR	252.245-7002		Reporting Loss of Government Property	APR	2012
DFAR	252.245-7004		Reporting, Reutilization, and Disposal	MAR	2015

Text of these clauses may be viewed via the Internet at http://farsite.hill.af.mil/

Section 00 73 46 - Wage Determination Schedule

WAGE DETERMINATION
General Decision Number: FL150029 01/02/2015 FL29

Superseded General Decision Number: FL20140029

State: Florida

Construction Type: Building

County: Okaloosa County in Florida.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Executive Order (EO) 13658 establishes an hourly minimum wage of $10.10 for 2015 that applies to all contracts subject to the Davis-Bacon Act for which the solicitation is issued on or after January 1, 2015. If this contract is covered by the EO, the contractor must pay all workers in any classification listed on this wage determination at least $10.10 (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract. The EO minimum wage rate will be adjusted annually. Additional

information on contractor requirements and worker protections

under the EO is available at www.dol.gov/whd/govcontracts.

Modification Number Publication Date

0 01/02/2015

ENGI0653-009 10/01/2012

Rates Fringes

OPERATOR: Concrete Pump,

Truck Mounted.....$ 25.30 11.13

OPERATOR: Mechanic.....$ 25.30 11.13

OPERATOR: Oiler.....$ 23.85 11.13

OPERATOR: Boom Truck.....$ 25.30 11.13

IRON0798-006 01/01/2013

Rates Fringes

IRONWORKER, ORNAMENTAL AND

REINFORCING.....$ 24.09 12.56

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* PAIN0164-002 08/01/2014

	Rates	Fringes
PAINTER: Spray	$ 17.50	8.83

PLUM0234-002 03/01/2014

	Rates	Fringes
PIPEFITTER (HVAC Pipe Installation)	$ 22.86	9.41

SUFL2009-025 05/22/2009

	Rates	Fringes
BRICKLAYER	$ 17.08	0.00
CARPENTER, Includes Acoustical Ceiling Installation, Drywall		

Hanging, and Form Work.....$ 12.96 0.00

CEMENT MASON/CONCRETE FINISHER...$ 12.90 0.00

ELECTRICIANS, Including Low

Voltage Wiring for Phones and

Alarms.....$ 13.91 0.00

IRONWORKER, STRUCTURAL.....$ 14.10 0.00

LABORER: Asphalt Shoveler.....$ 7.88 0.00

LABORER: Common or General.....$ 8.50 0.00

LABORER: Concrete Saw (Hand

Held/Walk Behind).....$ 12.63 0.00

LABORER: Mason Tender - Brick...$ 10.75 0.00

LABORER: Mason Tender -

Cement/Concrete.....$ 12.83 1.90

LABORER: Pipelayer.....$ 10.00 0.00

LABORER: Roof Tearoff.....$ 9.00 0.00

LABORER: Landscape and

Irrigation.....$ 9.45 0.00

MECHANICAL INSULATOR,

Including Duct and Pipe

Insulation.....$ 13.10 0.00

OPERATOR: Asphalt Spreader.....$ 11.41 0.00

OPERATOR: Backhoe/Excavator.....$ 11.00 0.00

OPERATOR: Bulldozer.....$ 15.01 0.00

OPERATOR: Crane.....$ 19.00 0.73

OPERATOR: Distributor.....$ 12.37 0.00

OPERATOR: Forklift.....$ 14.00 0.00

OPERATOR: Grader/Blade.....$ 13.73 0.00

OPERATOR: Loader.....$ 13.80 1.79

OPERATOR: Paver (Asphalt,

Aggregate, and Concrete).....$ 11.69 0.00

OPERATOR: Roller.....$ 10.68 0.00

OPERATOR: Screed.....$ 11.34 0.00

OPERATOR: Tractor.....$ 9.91 0.00

OPERATOR: Trencher.....$ 11.75 0.00

PAINTER: Brush and Roller.....$ 12.21 0.00

PIPEFITTER, Excludes HVAC

Pipe Installation.....$ 13.86 0.00

PLUMBER.....$ 15.51 0.00

ROOFER (Installation of Metal

Roofs Only).....$ 14.26 0.59

ROOFER, Includes Built Up,

Hot Tar, Modified Bitumen,

Shake & Shingle, Single Ply,

Slate, & Tile Roofs (Excludes

Installation of Metal Roofs).....$ 13.80 0.00

SHEET METAL WORKER, Includes

HVAC Duct Installation.....$ 12.68 0.00

Sprinkler Fitters.....$ 12.38 0.74

TILE SETTER.....$ 18.00 0.00

TRUCK DRIVER: Dump Truck.....$ 10.00 0.00

TRUCK DRIVER: Lowboy Truck.....$ 12.09 0.00

WELDERS - Receive rate prescribed for craft performing

operation to which welding is incidental.

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Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (ii)).

The body of each wage determination lists the classification and wage rates that have been found to be prevailing for the cited type(s) of construction in the area covered by the wage determination. The classifications are listed in alphabetical order of "identifiers" that indicate whether the particular rate is a union rate (current union negotiated rate for local), a survey rate (weighted average rate) or a union average rate (weighted union average rate).

Union Rate Identifiers

A four letter classification abbreviation identifier enclosed

in dotted lines beginning with characters other than "SU" or "UAVG" denotes that the union classification and rate were prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2014. PLUM is an abbreviation identifier of the union which prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. 07/01/2014 is the effective date of the most current negotiated rate, which in this example is July 1, 2014.

Union prevailing wage rates are updated to reflect all rate changes in the collective bargaining agreement (CBA) governing this classification and rate.

Survey Rate Identifiers

Classifications listed under the "SU" identifier indicate that no one rate prevailed for this classification in the survey and the published rate is derived by computing a weighted average rate based on all the rates reported in the survey for that

classification. As this weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SULA2012-007 5/13/2014. SU indicates the rates are survey rates based on a weighted average calculation of rates and are not majority rates. LA indicates the State of Louisiana. 2012 is the year of survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. 5/13/2014 indicates the survey completion date for the classifications and rates under that identifier.

Survey wage rates are not updated and remain in effect until a new survey is conducted.

Union Average Rate Identifiers

Classification(s) listed under the UAVG identifier indicate that no single majority rate prevailed for those classifications; however, 100% of the data reported for the classifications was union data. EXAMPLE: UAVG-OH-0010 08/29/2014. UAVG indicates that the rate is a weighted union average rate. OH indicates the state. The next number, 0010 in the example, is an internal number used in producing the wage

determination. 08/29/2014 indicates the survey completion date for the classifications and rates under that identifier.

A UAVG rate will be updated once a year, usually in January of each year, to reflect a weighted average of the current negotiated/CBA rate of the union locals from which the rate is based.

WAGE DETERMINATION APPEALS PROCESS

1.) Has there been an initial decision in the matter? This can be:

* an existing published wage determination
* a survey underlying a wage determination
* a Wage and Hour Division letter setting forth a position on a wage determination matter
* a conformance (additional classification and rate) ruling

On survey related matters, initial contact, including requests for summaries of surveys, should be with the Wage and Hour Regional Office for the area in which the survey was conducted because those Regional Offices have responsibility for the Davis-Bacon survey program. If the response from this initial contact is not satisfactory, then the process described in 2.) and 3.) should be followed.

With regard to any other matter not yet ripe for the formal process described here, initial contact should be with the Branch of Construction Wage Determinations. Write to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2.) If the answer to the question in 1.) is yes, then an interested party (those affected by the action) can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Write to:

Wage and Hour Administrator

U.S. Department of Labor

200 Constitution Avenue, N.W.

Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and by any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3.) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board

U.S. Department of Labor

200 Constitution Avenue, N.W.

Washington, DC 20210

4.) All decisions by the Administrative Review Board are final.

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END OF GENERAL DECISION

STATEMENT AND ACKNOWLEDGMENT

OMB No.: **9000-0014**
Expires: 12/31/2017

Public reporting burden for this collection of information is estimated to average 30 minutes per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the FAR Secretariat, (VIR), Regulatory and Federal Assistance Division, GSA, Washington, DC 20405; and to the Office of Management and Budget, Paperwork Reduction Project (9000-0014), Washington DC 20503.

PART I - STATEMENT OF PRIME CONTRACTOR

1. PRIME CONTRACT NO	2. DATE SUBCONTRACT AWARDED	3. SUBCONTRACT NUMBER
W9127S-14-D-6001	12/14/2015	M2008.0011.1-2752

4. PRIME CONTRACTOR			5. SUBCONTRACTOR		
a. NAME Aerostar SES LLC			a. NAME Evankoff, LLC		
b. STREET ADDRESS 1006 Floyd Culler Court			b. STREET ADDRESS 10705 SW 216th Street #215		
c. CITY Oak Ridge	d. STATE TN	e. ZIP CODE 37830	c. CITY Miami	d. STATE FL	e. ZIP CODE 33170

6. The prime contract [X] does, [ ] does not contain the clause entitled "Contract Work Hours and Safety Standards Act – Overtime Compensation."

7. The prime contractor states that under the contract shown in item 1, a subcontract was awarded on the date shown in item 2 to the subcontractor shown in item 5 by the following firm:

a. NAME OF AWARDING FIRM
Aerostar SES LLC

b. DESCRIPTION OF WORK BY SUBCONTRACTOR
Subcontractor is to install wall panels and canopies

8. PROJECT	9. LOCATION
Exterior Bldg Upgrades, Eglin AFB, FL	Eglin AFB, Florida

10a. NAME OF PERSON SIGNING	11. BY (Signature)	12. DATE SIGNED
Terri Clemens	Terri Clemens	12/14/2015
10b. TITLE OF PERSON SIGNING Counsel - Contracts Manager		

PART II – ACKNOWLEDGEMENT OF SUBCONTRACTOR

13. The subcontractor acknowledges that the following clauses of the contract shown in item 1 are included in this subcontract:

- Contract Work Hours and Safety Standards Act – Overtime Compensation – (if included in prime contract see Block 6)
- Payrolls and Basic Records
- Withholding of Funds
- Disputes Concerning Labor Standards
- Compliance with Construction Wage Rate Requirements and Related Regulations
- Construction Wage Rate Requirements
- Apprentices and Trainees
- Compliance with Copeland Act Requirements
- Subcontracts (Labor Standards)
- Contract Termination – Debarment
- Certification of Eligibility

14. NAMES OF ANY INTERMEDIATE SUBCONTRACTORS, IF ANY

A		C	
B		D	

15a. NAME OF PERSON SIGNING	16. BY (Signature)	17. DATE SIGNED
15b. TITLE OF PERSON SIGNING		

AerostarSES LLC	**ATTACHMENT 6** **SUBCONTRACTOR LIEN WAIVER AND RELEASE - INTERIM AND/OR FINAL RELEASE**

Date		Subcontractor/Supplier	Evankoff, LLC
Project Name	Exterior Bldg Upgrades, Eglin AFB, FL	Address	10705 SW 216th Street #215
		City, State, Zip	Miami FL 33170
Project No:	M2008.0011		
Subcontract No:	M2008.0011.1-2752	Phone	786.208.2071
Owner:	USACE, Little Rock District	Fax	786.208.2071

INTERIM RELEASE UPON PROGRESS PAYMENT (Required if the Subcontract is for Construction) **CURRENT PERIOD ENDING**

We affirm the following:

Current Contract Amount: _____

Total Complete to Date: _____

The Subcontractor/Supplier does hereby acknowledge that upon receipt by the undersigned of a check from Aerostar SES LLC in the sum of $ _____ and when the check has been properly endorsed and has been paid by the bank upon which it has been drawn, this document shall become effective to release any and all claims, rights of lien, bond claims (including Federal Miller Act claims) or retainage claims of any nature which the Subcontractor/Supplier has on the Project for labor, services, equipment, materials furnished, and/or claims through _____ except it does not cover any retention or items furnished thereafter. Before any recipient of this document relies on it, said party should verify evidence of payment to the Subcontractor/supplier.

Subcontractor/Supplier Initials _____

FINAL RELEASE (Required for ALL Subcontracts)

Upon receipt of a check by the undersigned from Aerostar SES LLC, (ASL) in the amount of

$ _____ , payable to Evankoff, LLC
(Amount of Payment) *(Name of Subcontractor/Supplier)*

and when the check has been properly endorsed and has been paid by the bank upon which it is drawn, this document shall become effective to release any claim, mechanic's lien, stop notice, or bond right the undersigned has on the above named project, subcontract number M2008.0011.1-2752.

The undersigned subcontractor further agrees to indemnify, defend and hold harmless ASL and its sureties on Liberty Mutual Insurance Company Bond No. 023033786, from any claims, liens, or causes of action for nonpayment of labor, equipment, materials, goods or services arising under or by virtue of said contract except as provided above, and certifies that no amounts payable under said contract have been assigned to anyone.

This Final Payment shall be accepted as full and final payment for all services, materials and labors rendered in connection with the above referenced subcontract.

Release executed this _____ day of _____ , 20_____

Subcontractor/Supplier _____

Authorized Signer _____

Print Name _____

Title _____

State of

County of _____

Subscribed and sworn (or affirmed) before me on _____ by _____
(date) (name of person making statement)

NOTARY PUBLIC

My Commission expires _____ *(Seal)*

AerostarSES LLC	**ATTACHMENT 6 (a)** **SUB TIER SUBCONTRACTOR/SUPPLIER LIEN WAIVER AND RELEASE - INTERIM AND/OR FINAL RELEASE**

Date

Subcontractor/Supplier

Project Name Exterior Bldg Upgrades, Eglin AFB, FL

Address

City, State, Zip

Project No. M2008.0011

Subcontract No:

Phone

Owner: USACE, Little Rock District

Fax

INTERIM RELEASE UPON PROGRESS PAYMENT (Required if the Subcontract is for Construction)

CURRENT PERIOD ENDING

We affirm the following:

Current Contract Amount: _____

Total Complete to Date: _____

The Subcontractor/Supplier does hereby acknowledge that upon receipt of a check by the Subcontractor/Supplier from _____ in the sum of $ _____ and when the check has been properly endorsed and has been paid by the bank upon which it has been drawn, this document shall become effective to release any and all claims, rights of lien, bond claims (including Federal Miller Act claims) or retainage claims of any nature which the Subcontractor/Supplier has on the Project for labor, services, equipment, materials furnished and/or claims

through _____

except it does not cover any retention or items furnished thereafter. Before any recipient of this document relies on it, said party should verify evidence of payment to the Subcontractor/supplier.

Sub Tier Subcontractor/Supplier Initials _____

FINAL RELEASE (Required for ALL Subcontracts)

Upon receipt of a check by the undersigned from Evankoff, LLC, in the amount of

$ _____ , payable to _____

(Amount of Payment) *(Name of Subcontractor/Supplier)*

and when the check has been properly endorsed and has been paid by the bank upon which it is drawn, this document shall become effective to release any claim, mechanic's lien, stop notice, or bond right the undersigned has on the above named project, subcontract number _____.

The undersigned subcontractor further agrees to indemnify, defend and hold harmless ASL and its sureties on Liberty Mutual Insurance Company Bond No. 023033786, from any claims, liens, or causes of action for nonpayment of labor, equipment, materials, goods or services arising under or by virtue of said contract except as provided above, and certifies that no amounts payable under said contract have been assigned to anyone.

This payment shall be accepted as full payment for all services, materials and labors rendered in connection with the above referenced subcontract.

Release executed this _____ day of _____ , 20_____

Subcontractor/Supplier _____

Authorized Signer _____

Print Name _____

Title _____

State of

County of _____

Subscribed and sworn (or affirmed) before me on _____ by _____

(date) (name of person making statement)

NOTARY PUBLIC

My Commission expires _____ *(Seal)*